Contract of Sale of Land

Property:

9 Furness Close, Wyndham Vale VIC 3024

ProSettle Conveyancing
Level 19
263 William Street
MELBOURNE VIC 3000
E: Conveyancing@Prosettle.com.au
Ref: 190983

Contract of Sale of Land

IMPORTANT NOTICE TO PURCHASERS – COOLING-OFF

Cooling-off period (Section 31 of the *Sale of Land Act* 1962)

You may end this contract within 3 clear business days of the day that you sign the contract if none of the exceptions listed below applies to you.

You must either give the vendor or the vendor's agent **written** notice that you are ending the contract or leave the notice at the address of the vendor or the vendor's agent to end this contract within this time in accordance with this cooling-off provision.

You are entitled to a refund of all the money you paid EXCEPT for $100 or 0.2% of the purchase price (whichever is more) if you end the contract in this way.

EXCEPTIONS: the 3-day cooling-off period does not apply if:

- you bought the property at a publicly advertised auction or on the day on which the auction was held; or
- you bought the land within 3 clear business days before a publicly advertised auction was to be held; or
- you bought the land within 3 clear business days after a publicly advertised auction was held; or
- the property is used primarily for industrial or commercial purposes; or
- the property is more than 20 hectares in size and is used primarily for farming; or
- you and the vendor previously signed a contract for the sale of the same land in substantially the same terms; or
- you are an estate agent or a corporate body.

NOTICE TO PURCHASERS OF PROPERTY OFF-THE-PLAN

Off-the-plan sales (Section 9AA(1A) of the *Sale of Land Act* 1962)

You may negotiate with the vendor about the amount of the deposit moneys payable under the contract of sale, up to 10 per cent of the purchase price.

A substantial period of time may elapse between the day on which you sign the contract of sale and the day on which you become the registered proprietor of the lot.

The value of the lot may change between the day on which you sign the contract of sale of that lot and the day on which you become the registered proprietor

WARNING TO ESTATE AGENTS
DO NOT USE THIS CONTRACT FOR SALES OF 'OFF THE PLAN' PROPERTIES
UNLESS IT HAS BEEN PREPARED BY A LEGAL PRACTITIONER

Contract of Sale of Land

The vendor agrees to sell and the purchaser agrees to buy the property, being the land and the goods, for the price and on the terms set out in this contract.
The terms of this contract are contained in the –

- particulars of sale; and
- special conditions, if any; and
- general conditions (which are in standard form: see general condition 6.1)

in that order of priority.

SIGNING OF THIS CONTRACT

WARNING: THIS IS A LEGALLY BINDING CONTRACT. YOU SHOULD READ THIS CONTRACT BEFORE SIGNING IT.

Purchasers should ensure that they have received a section 32 statement from the vendor before signing this contract. In this contract, "section 32 statement" means the statement required to be given by a vendor under section 32 of the *Sale of Land Act* 1962.

The authority of a person signing –

- under power of attorney; or
- as director of a corporation; or
- as agent authorised in writing by one of the parties –

must be noted beneath the signature.

Any person whose signature is secured by an estate agent acknowledges being given by the agent at the time of signing a copy of the terms of this contract.

SIGNED BY THE PURCHASER: .....

..... on 06 / 05 /2026

Print names(s) of person(s) signing: Jihyung Park

State nature of authority, if applicable: .....

This offer will lapse unless accepted within [ ] clear business days (3 clear business days if none specified)
In this contract, "business day" has the same meaning as in section 30 of the *Sale of Land Act* 1962

SIGNED BY THE VENDOR: .....

..... on 7 / 5 /2026

Print names(s) of person(s) signing: **Derek Ngan**

State nature of authority, if applicable: Sole director and secretary of Hyhb Pty Ltd ACN 641 154 494

The **DAY OF SALE** is the date by which both parties have signed this contract.

Particulars of Sale

Vendor's estate agent

Name:

Address:

Email:

Tel: Mob: Fax: Ref:

Vendor

Name: Hyhb Pty Ltd

Address:

ABN/ACN: 641 154 494

Vendor's legal practitioner or conveyancer

Name: ProSettle Conveyancing

Address: Level 19, 263 William Street, Melbourne VIC 3000

Email: Conveyancing@prosettle.com.au Mob: 0401063597 Ref: 190983

Purchaser

Name: Jihyung Park

Address:

ABN/ACN:

Email:

Purchaser's legal practitioner or conveyancer

Name: A & Y Legal

Address: Tel: (03) 8524 3567

Email: ~~Mobile: 0451 115 873~~

Tel: Email: anylegal.com.au@gmail.com Mob: Fax: Ref:

Land (general conditions 7 and 13)

The land is described in the table below –

Certificate of Title reference				being lot	on plan
Volume	12231	Folio	225	114	PS 740173P

If no title or plan references are recorded in the table, the land is as described in the section 32 statement or the register search statement and the document referred to as the diagram location in the register search statement attached to the section 32 statement

The land includes all improvements and fixtures.

Property address

The address of the land is: 9 Furness Close, Wyndham Vale VIC 3024

Goods sold with the land (general condition 6.3(f)) (*list or attach schedule*)

All fixed floor coverings, electric light fittings, window furnishings, fixtures and fittings of a permanent nature as inspected on the day of sale.

Payment

Price $ 610,000

Deposit $ 30,500 by 20/5/26 (of which $ 1000 has been paid)

Balance $ 579,500 payable at settlement

Deposit bond (NOT APPLICABLE AT AUCTION)

☐ General condition 15 applies only if the box is checked

Bank guarantee (NOT APPLICABLE AT AUCTION)

☐ General condition 16 applies only if the box is checked

GST (general condition 19)

Subject to general condition 19.2, the price includes GST (if any), unless the next box is checked

☐ GST (if any) must be paid in addition to the price if the box is checked

☐ This sale is a sale of land on which a 'farming business' is carried on which the parties consider meets the requirements of section 38-480 of the GST Act if the box is checked

☐ This sale is a sale of a 'going concern' if the box is checked

☐ The margin scheme will be used to calculate GST if the box is checked

GST Withholding Notice (s14–250 of Schedule 1 of the *Taxation Administration Act* 1953 (Cth))

☒ The Purchaser is not required to make a payment in relation to the supply of the above property if the box is checked.

Settlement (general conditions 17 & 26.2)

is due on 30 days from Contract date

unless the land is a lot on an unregistered plan of subdivision, in which case settlement is due on the later of:

- the above date; and
- the 14th day after the vendor gives notice in writing to the purchaser of registration of the plan of subdivision.

Lease (general condition 5.1)

☐ At settlement the purchaser is entitled to vacant possession of the property unless the box is checked, in which case the property is sold subject to the attached lease or tenancy document.

Terms contract (general condition 30)

☐ This contract is intended to be a terms contract within the meaning of the *Sale of Land Act* 1962 if the box is checked. (*Reference should be made to general condition 30 and any further applicable provisions should be added as special conditions)*

Loan (general condition 20) **(NOT APPLICABLE AT AUCTION)**

☒ This contract is subject to a loan being approved and the following details apply if the box is checked:

Lender: NAB

Loan amount: no more than _____ Approval date: 20/05/2026

Building report (NOT APPLICABLE AT AUCTION)

☐ General condition 21 applies only if the box is checked

Pest report (NOT APPLICABLE AT AUCTION)

☐ General condition 22 applies only if the box is checked

Special Conditions

1. FOREIGN ACQUISITIONS

1.1 In this special condition, "Foreign Person" has the same meaning given to that term in the Foreign Acquisitions and Takeovers Act 1974 (Cth).

1.2 The Purchaser has warranted that it is not a Foreign Person or in the event that it is a Foreign Person it has obtained approval stating the Commonwealth Government does not object to the Purchaser's purchase of the Property under the Foreign Acquisitions and Takeovers Act 1974 (Cth) ("FIRB Approval"). If this warranty is untrue or incorrect then:

(a) The Purchaser will be in default under this Contract; and

(b) Without prejudice to the Vendor's rights against the Purchaser under this Contract and otherwise at law, the Vendor may in its absolute discretion terminate this Contract by written notice to the Purchaser and the Vendor will be entitled to negotiate the re-sale of the Property and the Purchaser waives any right it may otherwise have had against the Vendor; and

(c) The Purchaser will indemnify and keep indemnified the Vendor having relied on the warranty against any Claim, loss, damage, cost and expense which the Vendor may suffer or incur.

1.3 This special condition is for the sole benefit of the Vendor.

2. GUARANTEE AND INDEMNITY

2.1 If the Purchaser is or includes a company (except a corporation listed on an Australian Stock Exchange Ltd), the Purchaser must deliver to the Vendor on the Day of Sale a Guarantee and Indemnity by its sole director if it is a sole director corporation or two directors if it is a multi-director corporation.

2.2 Failure by the Purchaser or the Substitute Purchaser to provide a Guarantee and Indemnity in accordance with Special Condition 2.1 will give the Vendor the right to end this Contract immediately by written notice at any time before the Guarantee is provided. General Condition 34.1 (Default notice) and General Condition 35 (Default not remedied) do not apply to the Vendor's right to end this Contract of Sale under this special condition.

3. PLANNING

The Purchaser buys subject to any restrictions imposed by and to the provisions of the Planning and Environment Act 1987, the Building Act 1993, the Local Government Act 1989 and any Planning Scheme or any Act and all regulations, local laws, restrictions and controls governing, regulating, controlling or affecting in any way the use or development of the land sold.

4. SECTION 32 STATEMENT

The Purchaser acknowledges that before signing this Contract, the Purchaser received a signed Vendor's Statement, which complies with the requirements of Section 32 of the Sale of Land Act. The Purchaser warrants that it will not make any objection, requisition or claim or rescinding, terminating or delaying settlement of this Contract because of any matter included in the Vendor's Statement.

5. ACCEPTANCE OF THE PROPERTY

5.1 The Vendor makes no warranty or representation:

(a) As to the state and condition of the Land and Property as of the Day of Sale;

(b) As to the compliance of the Land with any Environmental Law;

(c) As to the identical of Certificate of Title corresponding to the Land and Property;

(d) That the Property complies with any laws affecting the Land and the requirements of any municipality or statutory authority;

(e) Whether there are any issues of contamination which may materially diminish the value of the property and /or may affect any use of the property or any neighbouring property.

(f) That the Property may be used for any purpose.

5.2 The Purchaser acknowledges:

(a) That the Purchaser has inspected the property and has made all enquires and inquiries that a reasonably prudent person would make before entering into this Contract;

(b) That the Purchaser has entered into this Contract on the basis of its own inspection inquiries and enquiries that the Purchaser has carried out;

(c) That the Purchaser has entered into this Contract relying on the judgement of the Purchaser;

(d) That the Purchaser has satisfied itself as to all matters contained therein and accepts the Land and Property as of the Day of Sale;

(e) The purchaser agrees that in the Section 32 statement any reference to services that state 'connected' includes Septic Tank and Gas Bottle as the case maybe, if applicable. The purchaser confirms that they have made all necessary enquiry prior to the signing of this contract and are fully aware of the status of such services and don't solely rely upon the information contained in such statement and that the vendor will not be under any obligation to change, upgrade, connect any service or provide any compensatory measure to the purchaser whatsoever.

(f) That the Vendor shall be at liberty to disconnect any utilities prior to the settlement, including but not limited to electricity, gas and telephone that may have been connected to serving the Property on the Day of Sale; The Purchaser shall be solely responsible for the cost of reconnection of any service to the Property.

5.3 The Purchaser acknowledges that in relation to the Smoke Alarm on this land, they may be required at their expense to comply with the Regulation 5.14 of the Building Regulations 1994 requiring all dwellings and or units be fitted with self contained smoke alarms within 30 days of settlement.

5.4 The Purchaser declares that it accepts and purchases the property in its present condition subject to any defects and strictions and agrees that the vendor is not obliged or required to carry out any work on or to the property except otherwise provided for in this Contract.

5.5 The Purchaser cannot object to, make any requisition or Claim, claim for compensation, delay payment of the Balance or rescind or determine this Contract or require the Vendor to amend title or to bear the costs for any matters arising out of any of the matters covered by this special condition.

6. IMPROVEMENTS

The purchaser acknowledges and agrees that any improvements on the land may be subject to, or require compliance with, any Building Laws. Any failure to comply with any Building Laws will not, and will not be deemed to constitute a defect in the vendor's title.

6.1 If there are any above improvements (including but not limited to pool, spa, shed, deck, pergola, veranda) on the property, the vendor makes no warranties or representations that the improvement on the property has been applied permit, registered with the relevant council. The purchaser should acknowledge that the improvements on the property may be subject to or require compliance with current building regulations, municipal by-laws or any other statutory provisions or regulations or any repealed laws under which the improvements were constructed. The purchaser acknowledges and agrees that it shall be responsible for applying or registering the improvements with relevant council. The purchaser further acknowledges and agrees that it shall comply with council requirements and shall lodge relevant certificates with relevant council. The purchaser shall not claim any compensation or make any objection and/or requisition or delay settlement.

6.2 If there is no building permit for the renovation / alteration made by the Vendor, the purchaser does hereby acknowledge agree and declare that it shall be the purchaser's responsibility at his/her sole cost and expense to apply relevant permits and certificates.

7. REPRESENTATION AND WARRANTIRES

The Purchaser acknowledges that:

7.1 No conditions, warranties or other terms affecting the sale other than those embodied herein and the Purchaser shall not be entitled to rely on any representation alleged to have been made by the Vendor or its Agent such as are not made in the conditions of this Contract.

7.2 No representation or warranty has been made or given that the Property is suitable for the Purchaser's intended purpose or that any permit has been obtained or is available other than those disclosed in this Contract;.

7.3 Without limiting the generality of Special Condition 7.1, the Purchaser is not entitled to make any objection requisition or claim for compensation in respect of the state of repair and condition of any building on the Land sold or any items located within such building

8. VARIATIONS TO GENERAL CONDITIONS

8.1 The Purchaser and the Vendor agree that if there is any inconsistency between the provisions of the General Conditions and Special Conditions then, except in the case of manifest error, to the extent of any inconsistency the provisions of the Special Conditions will prevail and have priority.

8.2 General Condition 6.1 is amended by adding after 'warrants that' the words ', except to the extent that they are amended by the Special Conditions'.

8.3 General Condition 12, 31.4-31.6 (inclusive) shall not apply to this Contract.

8.4 General condition 21.2(a) is amended by substituting the words "designates it as a major structural building defect" in lieu of "designates it as a major building defect".

8.5 General Condition 23.1 is amended by adding the following text at the end of the Condition:

"The expression "periodic outgoings" does not include any amounts to which Section 10G of the Sale of Land Act 1962 (Vic) applies if the price is less than the threshold amount defined in section 10I of the Sale of Land Act 1962."

8.6 General Condition 28 is amended by adding the following text at the end of the Condition:

"This General Condition does not apply to any amounts to which Section 10G or Section 10H of the Sale of Land Act 1962 (Vic) applies if the price is less than the threshold amount defined in section 10I of the Sale of Land Act 1962."

8.7 General Condition 23.2 is amended by adding the following new sub-paragraph:

"23.2 (e) the Vendor shall not be responsible and the purchaser shall indemnify the vendor against any levy of special fees and charges made on or after the date of this contract under the Owners Corporation Act 2006 and no adjustment or allowance shall be made by the vendor in relation to any such levy."

8.8 General Condition 32 is amended by adding the following new paragraph at the end of the Condition:

"The purchaser acknowledges that the following items constitute 'a reasonably foreseeable loss':

(a) expenses payable by the vendor under any existing loan secured over the property or other property of the vendor;

(b) the vendor's legal costs and expenses (on a full indemnity basis) incurred due to the breach, including the cost of issuing any default notice agreed at $880.00 inclusive of GST for each notice;

(c) any commission or other expenses claimed by the Vendor's Estate Agent or any other person relating to the sale of the property; and

(d) penalties and any other expenses payable by the vendor due to any delay in completion of the purchase of another property.

(e) if the default results in settlement being delayed after 31 December in any calendar year, any additional land tax incurred by the vendor as a result of the land being included in the vendor's land tax assessment for the next calendar year."

8.9 General Condition 33 is amended by substituting the word "6%" in lieu of "2%".

8.10 General Condition 35.4(a) is amended to read as follows "an amount equal to 10% of the price is forfeited to the Vendor as the Vendor's absolute property, whether the Deposit has been paid or not; and".

9. DEPOSIT

If the Purchaser fails to pay the Deposit by the date specified in the Particulars of Sale, then without prejudice to the Vendor's other rights and remedies, General Condition 34.1 (Default notice) and General Condition 35 (Default not remedied) do not apply and the Vendor may at any time after the date fixed for payment of the Deposit and before the Purchaser has remedied its default, end this Contract by notice to the Purchaser.

10. LOAN APROVAL

10.1 General Condition 20.1 is amended by deleting the words "or any later date allowed by the vendor" and replacing them with the words: "or any later date expressly agreed to in writing by the Vendor."

10.2 The wordings of "written evidence of rejection or non-approval of the loan" in General Condition 20.2 refer strictly to the written evidence of rejection or non-approval of loan from the lender only ("Written Evidence")

10.2 The parties further agree that the said Written Evidence must consist of the minimum contents to be qualified as a valid termination:

(a) the proposed loan amount;

(b) the date of loan application is made;

(c) the reason of rejection or non-approval of loan.

10.3 General Condition 20.2(c) is amended by deleting the words ", on the vendor within 2 clear business days after the approval date or any later date allowed by the vendor".

11. NOMINATION

To validly nominate a substitute or additional transferee under General Condition 4, the Purchaser must:

(a) not be in default under this Contract of Sale when the nomination is made;

(b) make its nomination in writing to the Vendor no less than 14 days before the Settlement Date;

(c) deliver to the Vendor with the notice of nomination, a Guarantee in accordance with Special Condition if the nominee is a corporation as if the nominee was included as a Purchaser in the Contract of Sale;

12. DELIVERY OF STATEMENT OF ADJUSTMENTS

The Purchaser's legal practitioner or conveyancer must prepare and deliver to the Vendor's legal practitioner or conveyancer a statement of adjustments, together with copies of all supporting certificates, statements or notices relied upon in its preparation, no later than three (3) Business Days prior to the Settlement Date. Failure by the Purchaser's legal practitioner or conveyancer to comply with this shall constitute a default by the Purchaser under this Contract. In the event of such default, the Purchaser shall be liable to pay the sum of $220.00 (inclusive of GST) to the Vendor, which shall be payable by way of adjustment in the statement of adjustments at settlement and shall be treated as a liquidated debt due and owing by the Purchaser.

The provisions of this Contract shall prevail over any statutory or implied terms, conditions or warranties, but only to the extent of any inconsistency and only to the extent permitted by law and any other applicable legislation.

13. STAMP DUTY

(a) If there is more than one Purchaser, it is the Purchasers' responsibility to ensure that this contract correctly records at the day of sale the proportions in which they are buying the Property (the proportions).

(b) If the proportions recorded in the transfer differ from those recorded in the contract, it is the Purchaser's responsibility to pay any additional duty which may be assessed as a result of the variation.

(c) The Purchasers fully indemnify the Vendors, the Vendors' agent and the Vendors' legal practitioner against any claims or demands which may be made against any or all of them in relation to any additional duty payable as a result of the proportions in the transfer differing from those in this contract.

(d) This special condition will not merge on completion but shall endure for the benefit of the Vendor.

14. FINAL INSPECTION

Except with consent of the Vendor, the Purchaser or another person authorised by the Purchaser may only inspect the property on one occasion during the 7 days preceding and including the settlement date.

15. INDEMNITIES

Subject to any provision to the contrary in this Contract, the Purchaser shall indemnify and keep indemnified, the Vendor against all claims, demand, proceedings, judgments, damages, costs and losses of any nature whatsoever, which the Vendor may suffer, sustain or incur in connection with or relating to any liability, claim, action, demand, suit or proceedings however arising, made or incurred after the Settlement Date or from events or occurrences happening or arising after the Settlement Date out of or in respect of the Property or any act, matter or thing occurring thereon.

16. AUCTION

If the property is offered for sale by public auction, subject to the vendor's reserve price, then the rules for the conduct of the auction shall be as set out in the schedules to the Sale of Land (Public Auctions) Regulations 2024 or any rules prescribed by regulation which modify or replace those rules.

17. No Waiver Except in Writing

No waiver of any right, power or remedy of the Vendor under this Contract is effective unless it is in writing by the Vendor or the Vendor's legal practitioner or conveyancer. Any waiver operates only to the extent expressly stated in the written waiver. A single or partial exercise of, or delay or failure in exercising, any right, power or remedy does not operate as a waiver of that or any other right, power or remedy, nor does it prevent any future exercise of it.

18. SEVERABILITY

In the event of any part of this Contract being or becoming void or unenforceable or being illegal then that part shall be severed from this Contract to the extent that all parts that shall not be or become void, unenforceable or illegal shall remain in full force and effect and be unaffected by such severance.

General Conditions

Contract signing

1. ELECTRONIC SIGNATURE

1.1 In this general condition "electronic signature" means a digital signature or a visual representation of a person's handwritten signature or mark which is placed on a physical or electronic copy of this contract by electronic or mechanical means, and "electronically signed" has a corresponding meaning.

1.2 The parties consent to this contract being signed by or on behalf of a party by an electronic signature.

1.3 Where this contract is electronically signed by or on behalf of a party, the party warrants and agrees that the electronic signature has been used to identify the person signing and to indicate that the party intends to be bound by the electronic signature.

1.4 This contract may be electronically signed in any number of counterparts which together will constitute the one document.

1.5 Each party consents to the exchange of counterparts of this contract by delivery by email or such other electronic means as may be agreed in writing.

1.6 Each party must upon request promptly deliver a physical counterpart of this contract with the handwritten signature or signatures of the party and all written evidence of the authority of a person signing on their behalf, but a failure to comply with the request does not affect the validity of this contract.

2. LIABILITY OF SIGNATORY

Any signatory for a proprietary limited company purchaser is personally liable for the due performance of the purchaser's obligations as if the signatory were the purchaser in the case of a default by a proprietary limited company purchaser.

3. GUARANTEE

The vendor may require one or more directors of the purchaser to guarantee the purchaser's performance of this contract if the purchaser is a proprietary limited company.

4. NOMINEE

The purchaser may no later than 14 days before the due date for settlement nominate a substitute or additional person to take a transfer of the land, but the named purchaser remains personally liable for the due performance of all the purchaser's obligations under this contract.

Title

5. ENCUMBRANCES

5.1 The purchaser buys the property subject to:

(a) any encumbrance shown in the section 32 statement other than mortgages or caveats; and

(b) any reservations, exceptions and conditions in the crown grant; and

(c) any lease or tenancy referred to in the particulars of sale.

5.2 The purchaser indemnifies the vendor against all obligations under any lease or tenancy that are to be performed by the landlord after settlement.

6 VENDOR WARRANTIES

6.1 The vendor warrants that these general conditions 1 to 35 are identical to the general conditions 1 to 35 in the form of contract of sale of land published by the Law Institute of Victoria Limited and the Real Estate Institute of Victoria Ltd in the month and year set out at the foot of this page.

6.2 The warranties in general conditions 6.3 and 6.4 replace the purchaser's right to make requisitions and inquiries.

6.3 The vendor warrants that the vendor:

(a) has, or by the due date for settlement will have, the right to sell the land; and

(b) is under no legal disability; and

(c) is in possession of the land, either personally or through a tenant; and

(d) has not previously sold or granted any option to purchase, agreed to a lease or granted a pre-emptive right which is current over the land and which gives another party rights which have priority over the interest of the purchaser; and

(e) will at settlement be the holder of an unencumbered estate in fee simple in the land; and

(f) will at settlement be the unencumbered owner of any improvements, fixtures, fittings and goods sold with the land.

6.4 The vendor further warrants that the vendor has no knowledge of any of the following:

(a) public rights of way over the land;

(b) easements over the land;

(c) lease or other possessory agreement affecting the land;

(d) notice or order directly and currently affecting the land which will not be dealt with at settlement, other than the usual rate notices and any land tax notices;

(e) legal proceedings which would render the sale of the land void or voidable or capable of being set aside.

6.5 The warranties in general conditions 6.3 and 6.4 are subject to any contrary provisions in this contract and disclosures in the section 32 statement.

6.6 If sections 137B and 137C of the *Building Act* 1993 apply to this contract, the vendor warrants that:

(a) all domestic building work carried out in relation to the construction by or on behalf of the vendor of the home was carried out in a proper and workmanlike manner; and

(b) all materials used in that domestic building work were good and suitable for the purpose for which they were used and that, unless otherwise stated in the contract, those materials were new; and

(c) domestic building work was carried out in accordance with all laws and legal requirements, including, without limiting the generality of this warranty, the Building Act 1993 and regulations made under the Building Act 1993.

6.7 Words and phrases used in general condition 6.6 which are defined in the *Building Act* 1993 have the same meaning in general condition 6.6.

7. IDENTITY OF THE LAND

7.1 An omission or mistake in the description of the property or any deficiency in the area, description or measurements of the land does not invalidate the sale.

7.2 The purchaser may not:

(a) make any objection or claim for compensation for any alleged misdescription of the property or any deficiency in its area or measurements; or

(b) require the vendor to amend title or pay any cost of amending title.

8. SERVICES

8.1 The vendor does not represent that the services are adequate for the purchaser's proposed use of the property and the vendor advises the purchaser to make appropriate inquiries. The condition of the services may change between the day of sale and settlement and the vendor does not promise that the services will be in the same condition at settlement as they were on the day of sale.

8.2 The purchaser is responsible for the connection of all services to the property after settlement and the payment of any associated cost.

9. CONSENTS

The vendor must obtain any necessary consent or licence required for the vendor to sell the property. The contract will be at an end and all money paid must be refunded if any necessary consent or licence is not obtained by settlement.

10. TRANSFER & DUTY

10.1 The purchaser must prepare and deliver to the vendor at least 7 days before the due date for settlement any paper transfer of land document which is necessary for this transaction. The delivery of the transfer of land document is not acceptance of title.

10.2 The vendor must promptly initiate the Duties on Line or other form required by the State Revenue Office in respect of this transaction, and both parties must co-operate to complete it as soon as practicable.

11. RELEASE OF SECURITY INTEREST

11.1 This general condition applies if any part of the property is subject to a security interest to which the *Personal Property Securities Act* 2009 (Cth) applies.

11.2 For the purposes of enabling the purchaser to search the Personal Property Securities Register for any security interests affecting any personal property for which the purchaser may be entitled to a release, statement, approval or correction in accordance with general condition 11.4, the purchaser may request the vendor to provide the vendor's date of birth to the purchaser. The vendor must comply with a request made by the purchaser under this condition if the purchaser makes the request at least 21 days before the due date for settlement.

11.3 If the purchaser is given the details of the vendor's date of birth under general condition 11.2, the purchaser must

(a) only use the vendor's date of birth for the purposes specified in general condition 11.2; and

(b) keep the date of birth of the vendor secure and confidential.

11.4 The vendor must ensure that at or before settlement, the purchaser receives—

(a) a release from the secured party releasing the property from the security interest; or

(b) a statement in writing in accordance with section 275(1)(b) of the *Personal Property Securities Act* 2009 (Cth) setting out that the amount or obligation that is secured is nil at settlement; or

(c) a written approval or correction in accordance with section 275(1)(c) of the *Personal Property Securities Act* 2009 (Cth) indicating that, on settlement, the personal property included in the contract is not or will not be property in which the security interest is granted.

11.5 Subject to general condition 11.6, the vendor is not obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property—

(a) that—

(i) the purchaser intends to use predominantly for personal, domestic or household purposes; and

(ii) has a market value of not more than $5000 or, if a greater amount has been prescribed for the purposes of section 47(1) of the *Personal Property Securities Act* 2009 (Cth), not more than that prescribed amount; or

(b) that is sold in the ordinary course of the vendor's business of selling personal property of that kind.

11.6 The vendor is obliged to ensure that the purchaser receives a release, statement, approval or correction in respect of personal property described in general condition 11.5 if—

(a) the personal property is of a kind that may or must be described by serial number in the Personal Property Securities Register; or

(b) the purchaser has actual or constructive knowledge that the sale constitutes a breach of the security agreement that provides for the security interest.

11.7 A release for the purposes of general condition 11.4(a) must be in writing.

11.8 A release for the purposes of general condition 11.4(a) must be effective in releasing the goods from the security interest and be in a form which allows the purchaser to take title to the goods free of that security interest.

11.9 If the purchaser receives a release under general condition 11.4(a) the purchaser must provide the vendor with a copy of the release at or as soon as practicable after settlement.

11.10 In addition to ensuring that a release is received under general condition 7.4(a), the vendor must ensure that at or before settlement the purchaser receives a written undertaking from a secured party to register a financing change statement to reflect that release if the property being released includes goods of a kind that are described by serial number in the Personal Property Securities Register.

11.11 The purchaser must advise the vendor of any security interest that is registered on or before the day of sale on the Personal Property Securities Register, which the purchaser reasonably requires to be released, at least 21 days before the due date for settlement.

11.12 The vendor may delay settlement until 21 days after the purchaser advises the vendor of the security interests that the purchaser reasonably requires to be released if the purchaser does not provide an advice under general condition 11.11.

11.13 If settlement is delayed under general condition 11.12 the purchaser must pay the vendor—

(a) interest from the due date for settlement until the date on which settlement occurs or 21 days after the vendor receives the advice, whichever is the earlier; and

(b) any reasonable costs incurred by the vendor as a result of the delay—

as though the purchaser was in default.

11.14 The vendor is not required to ensure that the purchaser receives a release in respect of the land. This general condition 1.14 applies despite general condition 11.1.

11.15 Words and phrases which are defined in the *Personal Property Securities Act* 2009 (Cth) have the same meaning in general condition 11 unless the context requires otherwise.

12. BUILDER WARRANTY INSURANCE

The vendor warrants that the vendor will provide at settlement details of any current builder warranty insurance in the vendor's possession relating to the property if requested in writing to do so at least 21 days before settlement.

13. GENERAL LAW LAND

13.1 The Vendor must complete a conversion of title in accordance with section 14 of the *Transfer of Land Act* 1958 before settlement if the land is the subject of a provisional folio under section 23 of the Act.

13.2 The remaining provisions of this general condition 13 only apply if any part of the land is not under the operation of the *Transfer of Land Act* 1958.

13.3 The vendor is taken to be the holder of an unencumbered estate in fee simple in the land if there is an unbroken chain of title starting at least 30 years before the day of sale proving on the face of the documents the ownership of the entire legal and equitable estate without the aid of other evidence.

13.4 The purchaser is entitled to inspect the vendor's chain of title on request at such place in Victoria as the vendor nominates.

13.5 The purchaser is taken to have accepted the vendor's title if:

(a) 21 days have elapsed since the day of sale; and

(b) the purchaser has not reasonably objected to the title or reasonably required the vendor to remedy a defect in the title.

13.6 The contract will be at an end if:

(a) the vendor gives the purchaser a notice that the vendor is unable or unwilling to satisfy the purchaser's objection or requirement and that the contract will end if the objection or requirement is not withdrawn within 14 days of the giving of the notice; and

(b) the objection or requirement is not withdrawn in that time.

13.7 If the contract ends in accordance with general condition 13.6, the deposit must be returned to the purchaser and neither party has a claim against the other in damages.

13.8 General condition 17.1 [settlement] should be read as if the reference to 'registered proprietor' is a reference to 'owner' in respect of that part of the land which is not under the operation of the *Transfer of Land Act* 1958.

Money

14. DEPOSIT

14.1 The purchaser must pay the deposit:

(a) to the vendor's licensed estate agent; or

(b) if there is no estate agent, to the vendor's legal practitioner or conveyancer; or

(c) if the vendor directs, into a special purpose account in an authorised deposit-taking institution in Victoria specified by the vendor in the joint names of the purchaser and the vendor.

14.2 If the land sold is a lot on an unregistered plan of subdivision, the deposit:

(a) must not exceed 10% of the price; and

(b) must be paid to the vendor's estate agent, legal practitioner or conveyancer and held by the estate agent, legal practitioner or conveyancer on trust for the purchaser until the registration of the plan of subdivision.

14.3 The deposit must be released to the vendor if:

(a) the vendor provides particulars, to the satisfaction of the purchaser, that either-

(i) there are no debts secured against the property; or

(ii) if there are any debts, the total amount of those debts together with any amounts to be withheld in accordance with general conditions 24 and 25 does not exceed 80% of the sale price; and

(b) at least 28 days have elapsed since the particulars were given to the purchaser under paragraph (a); and

(c) all conditions of section 27 of the *Sale of Land Act* 1962 have been satisfied.

14.4 The stakeholder must pay the deposit and any interest to the party entitled when the deposit is released, the contract is settled, or the contract is ended.

14.5 The stakeholder may pay the deposit and any interest into court if it is reasonable to do so.

14.6 Where the purchaser is deemed by section 27(7) of the *Sale of Land Act* 1962 to have given the deposit release authorisation referred to in section 27(1), the purchaser is also deemed to have accepted title in the absence of any prior express objection to title.

14.7 Payment of the deposit may be made or tendered:

(a) in cash up to $1,000 or 0.2% of the price, whichever is greater; or

(b) by cheque drawn on an authorised deposit-taking institution; or

(c) by electronic funds transfer to a recipient having the appropriate facilities for receipt.

However, unless otherwise agreed:

(d) payment may not be made by credit card, debit card or any other financial transfer system that allows for any chargeback or funds reversal other than for fraud or mistaken payment, and

(e) any financial transfer or similar fees or deductions from the funds transferred, other than any fees charged by the recipient's authorised deposit-taking institution, must be paid by the remitter.

14.8 Payment by electronic funds transfer is made when cleared funds are received in the recipient's bank account.

14.9 Before the funds are electronically transferred the intended recipient must be notified in writing and given sufficient particulars to readily identify the relevant transaction.

14.10 As soon as the funds have been electronically transferred the intended recipient must be provided with the relevant transaction number or reference details.

14.11 For the purpose of this general condition 'authorised deposit-taking institution' means a body corporate for which an authority under section 9(3) of the *Banking Act 1959 (Cth)* is in force.

15. DEPOSIT BOND

15.1 This general condition only applies if the applicable box in the particulars of sale is checked.

15.2 In this general condition "deposit bond" means an irrevocable undertaking to pay on demand an amount equal to the deposit or any unpaid part of the deposit. The issuer and the form of the deposit bond must be satisfactory to the vendor. The deposit bond must have an expiry date at least 45 days after the due date for settlement.

15.3 The purchaser may deliver a deposit bond to the vendor's estate agent, legal practitioner or conveyancer within 7 days after the day of sale.

15.4 The purchaser may at least 45 days before a current deposit bond expires deliver a replacement deposit bond on the same terms and conditions.

15.5 Where a deposit bond is delivered, the purchaser must pay the deposit to the vendor's legal practitioner or conveyancer on the first to occur of:

(a) settlement;

(b) the date that is 45 days before the deposit bond or any replacement deposit bond expires;

(c) the date on which this contract ends in accordance with general condition 35.2 [default not remedied] following breach by the purchaser; and

(d) the date on which the vendor ends this contract by accepting repudiation of it by the purchaser.

15.6 The vendor may claim on the deposit bond without prior notice if the purchaser defaults under this contract or repudiates this contract and the contract is ended. The amount paid by the issuer satisfies the obligations of the purchaser under general condition 15.5 to the extent of the payment.

15.7 Nothing in this general condition limits the rights of the vendor if the purchaser defaults under this contract or repudiates this contract, except as provided in general condition 15.6.

15.8 This general condition is subject to general condition 14.2 [deposit].

16. BANK GUARANTEE

16.1 This general condition only applies if the applicable box in the particulars of sale is checked.

16.2 In this general condition:

(a) "bank guarantee" means an unconditional and irrevocable guarantee or undertaking by a bank in a form satisfactory to the vendor to pay on demand any amount under this contract agreed in writing, and

(b) "bank" means an authorised deposit-taking institution under the *Banking Act 1959 (Cth)*.

16.3 The purchaser may deliver a bank guarantee to the vendor's legal practitioner or conveyancer.

16.4 The purchaser must pay the amount secured by the bank guarantee to the vendor's legal practitioner or conveyancer on the first to occur of:

(a) settlement;

(b) the date that is 45 days before the bank guarantee expires;

(c) the date on which this contract ends in accordance with general condition 35.2 [default not remedied] following breach by the purchaser; and

(d) the date on which the vendor ends this contract by accepting repudiation of it by the purchaser.

16.5 The vendor must return the bank guarantee document to the purchaser when the purchaser pays the amount secured by the bank guarantee in accordance with general condition 16.4.

16.6 The vendor may claim on the bank guarantee without prior notice if the purchaser defaults under this contract or repudiates this contract and the contract is ended. The amount paid by the bank satisfies the obligations of the purchaser under general condition 16.4 to the extent of the payment.

16.7 Nothing in this general condition limits the rights of the vendor if the purchaser defaults under this contract or repudiates this contract except as provided in general condition 16.6.

16.8 This general condition is subject to general condition 14.2 [deposit].

17. SETTLEMENT

17.1 At settlement:

(a) the purchaser must pay the balance; and

(b) the vendor must:

(i) do all things necessary to enable the purchaser to become the registered proprietor of the land; and

(ii) give either vacant possession or receipt of rents and profits in accordance with the particulars of sale.

17.2 Settlement must be conducted between the hours of 10.00 am and 4.00 pm unless the parties agree otherwise.

17.3 The purchaser must pay all money other than the deposit in accordance with a written direction of the vendor or the vendor's legal practitioner or conveyancer.

18. ELECTRONIC SETTLEMENT

18.1 Settlement and lodgement of the instruments necessary to record the purchaser as registered proprietor of the land will be conducted electronically in accordance with the Electronic Conveyancing National Law. This general condition 18 has priority over any other provision of this contract to the extent of any inconsistency.

18.2 A party must immediately give written notice if that party reasonably believes that settlement and lodgement can no longer be conducted electronically. General condition 18 ceases to apply from when such a notice is given.

18.3 Each party must:

(a) be, or engage a representative who is, a subscriber for the purposes of the Electronic Conveyancing National Law,

(b) ensure that all other persons for whom that party is responsible and who are associated with this transaction are, or engage, a subscriber for the purposes of the Electronic Conveyancing National Law, and

(c) conduct the transaction in accordance with the Electronic Conveyancing National Law.

18.4 The vendor must open the electronic workspace ("workspace") as soon as reasonably practicable and nominate a date and time for settlement. The inclusion of a specific date and time for settlement in a workspace is not of itself a promise to settle on that date or at that time. The workspace is an electronic address for the service of notices and for written communications for the purposes of any electronic transactions legislation.

18.5 This general condition 18.5 applies if there is more than one electronic lodgement network operator in respect of the transaction. In this general condition 18.5 "the transaction" means this sale and purchase and any associated transaction involving any of the same subscribers.

To the extent that any interoperability rules governing the relationship between electronic lodgement network operators do not provide otherwise:

(a) the electronic lodgement network operator to conduct all the financial and lodgement aspects of the transaction after the workspace locks must be one which is willing and able to conduct such aspects of the transaction in accordance with the instructions of all the subscribers in the workspaces of all the electronic lodgement network operators after the workspace locks;

(b) if two or more electronic lodgement network operators meet that description, one may be selected by purchaser's incoming mortgagee having the highest priority but if there is no mortgagee of the purchaser, the vendor must make the selection.

18.6 Settlement occurs when the workspace records that:

(a) there has been an exchange of funds or value between the exchange settlement account or accounts in the Reserve Bank of Australia of the relevant financial institutions or their financial settlement agents in accordance with the instructions of the parties; or

(b) if there is no exchange of funds or value, the documents necessary to enable the purchaser to become registered proprietor of the land have been accepted for electronic lodgement.

18.7 The parties must do everything reasonably necessary to effect settlement:

(a) electronically on the next business day, or

(b) at the option of either party, otherwise than electronically as soon as possible –

if, after the locking of the workspace at the nominated settlement time, settlement in accordance with general condition 18.6 has not occurred by 4.00 pm, or 6.00 pm if the nominated time for settlement is after 4.00 pm.

18.8 Each party must do everything reasonably necessary to assist the other party to trace and identify the recipient of any missing or mistaken payment and to recover the missing or mistaken payment.

18.9 The vendor must before settlement:

(a) deliver any keys, security devices and codes ("keys") to the estate agent named in the contract,

(b) direct the estate agent to give the keys to the purchaser or the purchaser's nominee on notification of settlement by the vendor, the vendor's subscriber or the electronic lodgement network operator;

(c) deliver all other physical documents and items (other than the goods sold by the contract) to which the purchaser is entitled at settlement, and any keys if not delivered to the estate agent, to the vendor's subscriber or, if there is no vendor's subscriber, confirm in writing to the purchaser that the vendor holds those documents, items and keys at the vendor's address set out in the contract, and

give, or direct its subscriber to give, all those documents and items and any such keys to the purchaser or the purchaser's nominee on notification by the electronic lodgement network operator of settlement.

19. GST

19.1 The purchaser does not have to pay the vendor any amount in respect of GST in addition to the price if the particulars of sale specify that the price includes GST (if any).

19.2 The purchaser must pay to the vendor any GST payable by the vendor in respect of a taxable supply made under this contract in addition to the price if:

(a) the particulars of sale specify that GST (if any) must be paid in addition to the price; or

(b) GST is payable solely as a result of any action taken or intended to be taken by the purchaser after the day of sale, including a change of use; or

(c) the particulars of sale specify that the supply made under this contract is of land on which a 'farming business' is carried on and the supply (or part of it) does not satisfy the requirements of section 38-480 of the GST Act; or

(d) the particulars of sale specify that the supply made under this contract is of a going concern and the supply (or a part of it) does not satisfy the requirements of section 38-325 of the GST Act.

19.3 The purchaser is not obliged to pay any GST under this contract until a tax invoice has been given to the purchaser.

19.4 If the particulars of sale specify that the supply made under this contract is of land on which a 'farming business' is carried on:

(a) the vendor warrants that the property is land on which a farming business has been carried on for the period of 5 years preceding the date of supply; and

(b) the purchaser warrants that the purchaser intends that a farming business will be carried on after settlement on the property.

19.5 If the particulars of sale specify that the supply made under this contract is a 'going concern':

(a) the parties agree that this contract is for the supply of a going concern; and

(b) the purchaser warrants that the purchaser is, or prior to settlement will be, registered for GST; and

(c) the vendor warrants that the vendor will carry on the going concern until the date of supply.

19.6 If the particulars of sale specify that the supply made under this contract is a 'margin scheme' supply, the parties agree that the margin scheme applies to this contract.

19.7 In this general condition:

(a) 'GST Act' means *A New Tax System (Goods and Services Tax) Act* 1999 (Cth); and

(b) 'GST' includes penalties and interest.

20. LOAN

20.1 If the particulars of sale specify that this contract is subject to a loan being approved, this contract is subject to the lender approving the loan on the security of the property by the approval date or any later date allowed by the vendor.

20.2 The purchaser may end the contract if the loan is not approved by the approval date, but only if the purchaser:

(a) immediately applied for the loan; and

(b) did everything reasonably required to obtain approval of the loan; and

(c) serves written notice ending the contract, together with written evidence of rejection or non-approval of the loan, on the vendor within 2 clear business days after the approval date or any later date allowed by the vendor; and

(d) is not in default under any other condition of this contract when the notice is given.

20.3 All money must be immediately refunded to the purchaser if the contract is ended.

21. BUILDING REPORT

21.1 This general condition only applies if the applicable box in the particulars of sale is checked.

21.2 The purchaser may end this contract within 14 days from the day of sale if the purchaser:

(a) obtains a written report from a registered building practitioner or architect which discloses a current defect in a structure on the land and designates it as a major building defect;

(b) gives the vendor a copy of the report and a written notice ending this contract; and

(c) is not then in default.

21.3 All money paid must be immediately refunded to the purchaser if the contract ends in accordance with this general condition.

21.4 A notice under this general condition may be served on the vendor's legal practitioner, conveyancer or estate agent even if the estate agent's authority has formally expired at the time of service.

21.5 The registered building practitioner may inspect the property at any reasonable time for the purpose of preparing the report.

22. PEST REPORT

22.1 This general condition only applies if the applicable box in the particulars of sale is checked.

22.2 The purchaser may end this contract within 14 days from the day of sale if the purchaser:

(a) obtains a written report from a pest control operator licensed under Victorian law which discloses a current pest infestation on the land and designates it as a major infestation affecting the structure of a building on the land;

(b) gives the vendor a copy of the report and a written notice ending this contract; and

(c) is not then in default.

22.3 All money paid must be immediately refunded to the purchaser if the contract ends in accordance with this general condition.

22.4 A notice under this general condition may be served on the vendor's legal practitioner, conveyancer or estate agent even if the estate agent's authority has formally expired at the time of service.

22.5 The pest control operator may inspect the property at any reasonable time for the purpose of preparing the report.

23. ADJUSTMENTS

23.1 All periodic outgoings payable by the vendor, and any rent and other income received in respect of the property must be apportioned between the parties on the settlement date and any adjustments paid and received as appropriate.

23.2 The periodic outgoings and rent and other income must be apportioned on the following basis:

(a) the vendor is liable for the periodic outgoings and entitled to the rent and other income up to and including the day of settlement; and

(b) the land is treated as the only land of which the vendor is owner (as defined in the *Land Tax Act* 2005); and

(c) the vendor is taken to own the land as a resident Australian beneficial owner; and

(d) any personal statutory benefit available to each party is disregarded in calculating apportionment.

23.3 The purchaser must provide copies of all certificates and other information used to calculate the adjustments under general condition 23, if requested by the vendor.

24. FOREIGN RESIDENT CAPITAL GAINS WITHHOLDING

24.1 Words defined or used in Subdivision 14-D of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* have the same meaning in this general condition unless the context requires otherwise.

24.2 Every vendor under this contract is a foreign resident for the purposes of this general condition unless the vendor gives the purchaser a clearance certificate issued by the Commissioner under section 14-220 (1) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The specified period in the clearance certificate must include the actual date of settlement.

24.3 The remaining provisions of this general condition 24 only apply if the purchaser is required to pay the Commissioner an amount in accordance with section 14-200(3) or section 14-235 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* ("the amount") because one or more of the vendors is a foreign resident, the property has or will have a market value not less than the amount set out in section 14-215 of the legislation just after the transaction, and the transaction is not excluded under section 14-215(1) of the legislation.

24.4 The amount is to be deducted from the vendor's entitlement to the contract consideration. The vendor must pay to the purchaser at settlement such part of the amount as is represented by non-monetary consideration.

24.5 The purchaser must:

(a) engage a legal practitioner or conveyancer ("representative") to conduct all the legal aspects of settlement, including the performance of the purchaser's obligations under the legislation and this general condition; and

(b) ensure that the representative does so.

24.6 The terms of the representative's engagement are taken to include instructions to have regard to the vendor's interests and instructions that the representative must:

(a) pay, or ensure payment of, the amount to the Commissioner in the manner required by the Commissioner and as soon as reasonably and practicably possible, from moneys under the control or direction of the representative in accordance with this general condition if the sale of the property settles;

(b) promptly provide the vendor with proof of payment; and

(c) otherwise comply, or ensure compliance, with this general condition;

despite:

(d) any contrary instructions, other than from both the purchaser and the vendor; and

(e) any other provision in this contract to the contrary.

24.7 The representative is taken to have complied with the requirements of general condition 24.6 if:

(a) the settlement is conducted through an electronic lodgement network; and

(b) the amount is included in the settlement statement requiring payment to the Commissioner in respect of this transaction.

24.8 Any clearance certificate or document evidencing variation of the amount in accordance with section 14-235(2) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* must be given to the purchaser at least 5 business days before the due date for settlement.

24.9 The vendor must provide the purchaser with such information as the purchaser requires to comply with the purchaser's obligation to pay the amount in accordance with section 14-200 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The information must be provided within 5 business days of request by the purchaser. The vendor warrants that the information the vendor provides is true and correct.

24.10 The purchaser is responsible for any penalties or interest payable to the Commissioner on account of late payment of the amount.

25. GST WITHHOLDING

25.1 Words and expressions defined or used in Subdivision 14-E of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* or in *A New Tax System (Goods and Services Tax) Act 1999 (Cth)* have the same meaning in this general condition unless the context requires otherwise. Words and expressions first used in this general condition and shown in italics and marked with an asterisk are defined or described in at least one of those Acts.

25.2 The purchaser must notify the vendor in writing of the name of the recipient of the *supply for the purposes of section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* at least 21 days before the due date for settlement unless the recipient is the purchaser named in the contract.

25.3 The vendor must at least 14 days before the due date for settlement provide the purchaser and any person nominated by the purchaser under general condition 4 with a GST withholding notice in accordance with section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*, and must provide all information required by the purchaser or any person so nominated to confirm the accuracy of the notice.

25.4 The remaining provisions of this general condition 25 apply if the purchaser is or may be required to pay the Commissioner an *amount in accordance with section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* because the property is *new residential premises or *potential residential land in either case falling within the parameters of that section, and also if the sale attracts the operation of section 14-255 of the legislation. Nothing in this general condition 25 is to be taken as relieving the vendor from compliance with section 14-255.

25.5 The amount is to be deducted from the vendor's entitlement to the contract *consideration and is then taken to be paid to the vendor, whether or not the vendor provides the purchaser with a GST withholding notice in accordance with section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The vendor must pay to the purchaser at settlement such part of the amount as is represented by non-monetary consideration.

25.6 The purchaser must:

(a) engage a legal practitioner or conveyancer ("representative") to conduct all the legal aspects of settlement, including the performance of the purchaser's obligations under the legislation and this general condition; and

(b) ensure that the representative does so.

25.7 The terms of the representative's engagement are taken to include instructions to have regard to the vendor's interests relating to the payment of the amount to the Commissioner and instructions that the representative must:

(a) pay, or ensure payment of, the amount to the Commissioner in the manner required by the Commissioner and as soon as reasonably and practicably possible, from moneys under the control or direction of the representative in accordance with this general condition on settlement of the sale of the property;

(b) promptly provide the vendor with evidence of payment, including any notification or other document provided by the purchaser to the Commissioner relating to payment; and

(c) otherwise comply, or ensure compliance, with this general condition;

despite:

(d) any contrary instructions, other than from both the purchaser and the vendor; and

(e) any other provision in this contract to the contrary.

25.8 The representative is taken to have complied with the requirements of general condition 25.7 if:

(a) settlement is conducted through an electronic lodgement network; and

(b) the amount is included in the settlement statement requiring payment to the Commissioner in respect of this transaction.

25.9 The purchaser may at settlement give the vendor a bank cheque for the amount in accordance with section 16-30 (3) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*, but only if:

(a) so agreed by the vendor in writing; and

(b) the settlement is not conducted through an electronic lodgement network.

However, if the purchaser gives the bank cheque in accordance with this general condition 25.9, the vendor must:

(c) immediately after settlement provide the bank cheque to the Commissioner to pay the amount in relation to the supply; and

(d) give the purchaser a receipt for the bank cheque which identifies the transaction and includes particulars of the bank cheque, at the same time the purchaser gives the vendor the bank cheque.

25.10 A party must provide the other party with such information as the other party requires to:

(a) decide if an amount is required to be paid or the quantum of it, or

(b) comply with the purchaser's obligation to pay the amount,

in accordance with section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*. The information must be provided within 5 business days of a written request. The party providing the information warrants that it is true and correct.

25.11 The vendor warrants that:

(a) at settlement, the property is not new residential premises or potential residential land in either case falling within the parameters of section 14-250 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* if the vendor gives the purchaser a written notice under section 14-255 to the effect that the purchaser will not be required to make a payment under section 14-250 in respect of the supply, or fails to give a written notice as required by and within the time specified in section 14-255; and

(b) the amount described in a written notice given by the vendor to the purchaser under section 14-255 of Schedule 1 to the *Taxation Administration Act 1953 (Cth)* is the correct amount required to be paid under section 14-250 of the legislation.

25.12 The purchaser is responsible for any penalties or interest payable to the Commissioner on account of non-payment or late payment of the amount, except to the extent that:

(a) the penalties or interest arise from any failure on the part of the vendor, including breach of a warranty in general condition 25.11; or

(b) the purchaser has a reasonable belief that the property is neither new residential premises nor potential residential land requiring the purchaser to pay an amount to the Commissioner in accordance with section 14-250 (1) of Schedule 1 to the *Taxation Administration Act 1953 (Cth)*.

The vendor is responsible for any penalties or interest payable to the Commissioner on account of non-payment or late payment of the amount if either exception applies.

Transactional

26. TIME & CO OPERATION

26.1 Time is of the essence of this contract.

26.2 Time is extended until the next business day if the time for performing any action falls on a day which is not a business day.

26.3 Each party must do all things reasonably necessary to enable this contract to proceed to settlement, and must act in a prompt and efficient manner.

26.4 Any unfulfilled obligation will not merge on settlement.

27. SERVICE

27.1 Any document required to be served by or on any party may be served by or on the legal practitioner or conveyancer for that party.

27.2 A cooling off notice under section 31 of the *Sale of Land Act 1962* or a notice under general condition 20 [loan approval], 21 [building report] or 22 [pest report] may be served on the vendor's legal practitioner, conveyancer or estate agent even if the estate agent's authority has formally expired at the time of service.

27.3 A document is sufficiently served:

(a) personally, or

(b) by pre-paid post, or

(c) in any manner authorized by law or by the Supreme Court for service of documents, including any manner authorised for service on or by a legal practitioner, whether or not the person serving or receiving the document is a legal practitioner, or

(d) by email.

27.4 Any document properly sent by:

(a) express post is taken to have been served on the next business day after posting, unless proved otherwise;

(b) priority post is taken to have been served on the fourth business day after posting, unless proved otherwise;

(c) regular post is taken to have been served on the sixth business day after posting, unless proved otherwise;

(d) email is taken to have been served at the time of receipt within the meaning of section 13A of the *Electronic Transactions (Victoria) Act 2000*.

27.5 In this contract 'document' includes 'demand' and 'notice', 'serve' includes 'give', and 'served' and 'service' have corresponding meanings.

28. NOTICES

28.1 The vendor is responsible for any notice, order, demand or levy imposing liability on the property that is issued or made before the day of sale, and does not relate to periodic outgoings.

28.2 The purchaser is responsible for any notice, order, demand or levy imposing liability on the property that is issued or made on or after the day of sale, and does not relate to periodic outgoings.

28.3 The purchaser may enter the property to comply with that responsibility where action is required before settlement.

29. INSPECTION

The purchaser and/or another person authorised by the purchaser may inspect the property at any reasonable time during the 7 days preceding and including the settlement day.

30. TERMS CONTRACT

30.1 If this is a 'terms contract' as defined in the *Sale of Land Act 1962*:

(a) any mortgage affecting the land sold must be discharged as to that land before the purchaser becomes entitled to possession or to the receipt of rents and profits unless the vendor satisfies section 29M of the *Sale of Land Act* 1962; and

(b) the deposit and all other money payable under the contract (other than any money payable in excess of the amount required to so discharge the mortgage) must be paid to a legal practitioner or conveyancer or a licensed estate agent to be applied in or towards discharging the mortgage.

30.2 While any money remains owing each of the following applies:

(a) the purchaser must maintain full damage and destruction insurance of the property and public risk insurance noting all parties having an insurable interest with an insurer approved in writing by the vendor;

(b) the purchaser must deliver copies of the signed insurance application forms, the policies and the insurance receipts to the vendor not less than 10 days before taking possession of the property or becoming entitled to receipt of the rents and profits;

(c) the purchaser must deliver copies of any amendments to the policies and the insurance receipts on each amendment or renewal as evidence of the status of the policies from time to time;

(d) the vendor may pay any renewal premiums or take out the insurance if the purchaser fails to meet these obligations;

(e) insurance costs paid by the vendor under paragraph (d) must be refunded by the purchaser on demand without affecting the vendor's other rights under this contract;

(f) the purchaser must maintain and operate the property in good repair (fair wear and tear excepted) and keep the property safe, lawful, structurally sound, weatherproof and free from contaminations and dangerous substances;

(g) the property must not be altered in any way without the written consent of the vendor which must not be unreasonably refused or delayed;

(h) the purchaser must observe all obligations that affect owners or occupiers of land;

(i) the vendor and/or other person authorised by the vendor may enter the property at any reasonable time to inspect it on giving 7 days written notice, but not more than twice in a year.

31. LOSS OR DAMAGE BEFORE SETTLEMENT

31.1 The vendor carries the risk of loss or damage to the property until settlement.

31.2 The vendor must deliver the property to the purchaser at settlement in the same condition it was in on the day of sale, except for fair wear and tear.

31.3 The purchaser must not delay settlement because one or more of the goods is not in the condition required by general condition 31.2, but may claim compensation from the vendor after settlement.

31.4 The purchaser may nominate an amount not exceeding $5,000 to be held by a stakeholder to be appointed by the parties if the property is not in the condition required by general condition 31.2 at settlement.

31.5 The nominated amount may be deducted from the amount due to the vendor at settlement and paid to the stakeholder, but only if the purchaser also pays an amount equal to the nominated amount to the stakeholder.

31.6 The stakeholder must pay the amounts referred to in general condition 31.5 in accordance with the determination of the dispute, including any order for payment of the costs of the resolution of the dispute.

32. BREACH

A party who breaches this contract must pay to the other party on demand:

(a) compensation for any reasonably foreseeable loss to the other party resulting from the breach; and

(b) any interest due under this contract as a result of the breach.

Default

33. INTEREST

Interest at a rate of 2% per annum plus the rate for the time being fixed by section 2 of the *Penalty Interest Rates Act* 1983 is payable at settlement on any money owing under the contract during the period of default, without affecting any other rights of the offended party.

34. DEFAULT NOTICE

34.1 A party is not entitled to exercise any rights arising from the other party's default, other than the right to receive interest and the right to sue for money owing, until the other party is given and fails to comply with a written default notice.

34.2 The default notice must:

(a) specify the particulars of the default; and

(b) state that it is the offended party's intention to exercise the rights arising from the default unless, within 14 days of the notice being given -

(i) the default is remedied; and

(ii) the reasonable costs incurred as a result of the default and any interest payable are paid.

35. DEFAULT NOT REMEDIED

35.1 All unpaid money under the contract becomes immediately payable to the vendor if the default has been made by the purchaser and is not remedied and the costs and interest are not paid.

35.2 The contract immediately ends if:

(a) the default notice also states that unless the default is remedied and the reasonable costs and interest are paid, the contract will be ended in accordance with this general condition; and

(b) the default is not remedied and the reasonable costs and interest are not paid by the end of the period of the default notice.

35.3 If the contract ends by a default notice given by the purchaser:

(a) the purchaser must be repaid any money paid under the contract and be paid any interest and reasonable costs payable under the contract; and

(b) all those amounts are a charge on the land until payment; and

(c) the purchaser may also recover any loss otherwise recoverable.

35.4 If the contract ends by a default notice given by the vendor:

(a) the deposit up to 10% of the price is forfeited to the vendor as the vendor's absolute property, whether the deposit has been paid or not; and

(b) the vendor is entitled to possession of the property; and

(c) in addition to any other remedy, the vendor may within one year of the contract ending either:

(i) retain the property and sue for damages for breach of contract; or

(ii) resell the property in any manner and recover any deficiency in the price on the resale and any resulting expenses by way of liquidated damages; and

(d) the vendor may retain any part of the price paid until the vendor's damages have been determined and may apply that money towards those damages; and

(e) any determination of the vendor's damages must take into account the amount forfeited to the vendor.

35.5 The ending of the contract does not affect the rights of the offended party as a consequence of the default.

GUARANTEE and INDEMNITY

I/We, ... of .....

and..... of .....

being the **Sole Director / Directors** of ..... of

..... (called the "Guarantors") IN CONSIDERATION of the Vendor selling to the Purchaser at our request the Land described in this Contract of Sale for the price and upon the terms and conditions contained therein **DO** for ourselves and our respective executors and administrators **JOINTLY AND SEVERALLY COVENANT** with the said Vendor and their assigns that if at any time default shall be made in payment of the Deposit Money or residue of Purchase Money or interest or any other moneys payable by the Purchaser to the Vendor under this Contract or in the performance or observance of any term or condition of this Contract to be performed or observed by the Purchaser I/we will immediately on demand by the Vendor pay to the Vendor the whole of the Deposit Money, residue of Purchase Money, interest or other moneys which shall then be due and payable to the Vendor and indemnify and agree to keep the Vendor indemnified against all loss of Deposit Money, residue of Purchase Money, interest and other moneys payable under the within Contract and all losses, costs, charges and expenses whatsoever which the Vendor may incur by reason of any default on the part of the Purchaser. This Guarantee shall be a continuing Guarantee and Indemnity and shall not be released by: -

(f) any neglect or forbearance on the part of the Vendor in enforcing payment of any of the moneys payable under the within Contract;
(g) the performance or observance of any of the agreements, obligations or conditions under the within Contract;
(h) by time given to the Purchaser for any such payment performance or observance;
(i) by reason of the Vendor assigning his, her or their rights under the said Contract; and
(j) by any other thing which under the law relating to sureties would but for this provision have the effect of releasing me/us, my/our executors or administrators.

IN WITNESS whereof the parties hereto have set their hands and seals

this ..... day of .....

SIGNED by the said)
Print Name:)
) .....
..... Director (Sign)

in the presence of:)
) .....
Witness:)
.....

Vendor Statement

The vendor makes this statement in respect of the land in accordance with section 32 of the *Sale of Land Act* 1962.

This statement must be signed by the vendor and given to the purchaser before the purchaser signs the contract. The vendor may sign by electronic signature.

The purchaser acknowledges being given this statement signed by the vendor with the attached documents before the purchaser signed any contract.

Land	9 FURNESS CLOSE, WYNDHAM VALE VIC 3024

Vendor's name	Hyhb Pty Ltd ACN 641 154 494	Date 30 / 4 / 26
Vendor's signature		
Purchaser's name	Jihyung Park	Date 06 / 05 2026
Purchaser's signature		
Purchaser's name		Date / /
Purchaser's signature		

1. FINANCIAL MATTERS

1.1 **Particulars of any Rates, Taxes, Charges or Other Similar Outgoings** (and any interest on them)

(a) ☒ Are contained in the attached certificate/s.

Any further amounts for which the purchaser may become liable as a consequence of the purchase are as set out below:-

- Owners Corporation fees, including fees for any Owners Corporation which was not operative at the Day of Sale but which has become operative after the Day of Sale, and/or any special levies struck after the Day of Sale;
- Annual increases in all rates & outgoings if the Day of Sale falls into the next rating period after this Vendor's Statement was prepared.
- The purchaser may become liable for Land Tax depending on the use to which the property is put and other properties owned by the purchaser.

1.2 **Particulars of any Charge** (whether registered or not) imposed by or under any Act to secure an amount due under that Act, including the amount owing under the charge

None to the vendor's knowledge save the Fire Services Property Levy disclosed in Council's Rate Notice/Land Information Certificate.

1.3 **Terms Contract**

This section 1.3 only applies if this vendor statement is in respect of a terms contract where the purchaser is obliged to make 2 or more payments (other than a deposit or final payment) to the vendor after the execution of the contract and before the purchaser is entitled to a conveyance or transfer of the land.

Not Applicable.

1.4 **Sale Subject to Mortgage**

This section 1.4 only applies if this vendor statement is in respect of a contract which provides that any mortgage (whether registered or unregistered), is NOT to be discharged before the purchaser becomes entitled to possession or receipts of rents and profits.

Not Applicable.

1.5 **Commercial and Industrial Property Tax Reform Act 2024 (Vic) (CIPT Act)**

(a) The Australian Valuation Property Classification Code (within the meaning of the CIPT Act) most recently allocated to the land is as follows:
The AVPCC allocated to the property is contained in the attached property clearance certificate/land information statement/council rates notice.

(b) Is the land tax reform scheme land within the meaning of the CIPT Act?
If applicable, refer to attached Property Clearance Certificate. If the certificate states that the AVPCC allocated to the land indicates a qualifying use, the land is considered tax reform scheme land within the meaning of the CIPT Act. If the certificate states that the AVPCC allocated to the land is not a qualifying use, the land is not considered land tax reform scheme land within the meaning of the CIPT Act.

(c) If the land is tax reform scheme land within the meaning of the CIPT Act, the entry date within the meaning of the CIPT Act is as follows:
Refer to attached Property Clearance Certificate for date of entry into reform, if applicable.

2. INSURANCE

2.1 **Damage and Destruction**

This section 2.1 only applies if this vendor statement is in respect of a contract which does NOT provide for the land to remain at the risk of the vendor until the purchaser becomes entitled to possession or receipt of rents and profits.

Not Applicable

2.2 **Owner Builder**

This section 2.2 only applies where there is a residence on the land that was constructed by an owner-builder within the preceding 6 years and section 137B of the Building Act 1993 applies to the residence.

Not Applicable

3. LAND USE

3.1 **Easements, Covenants or Other Similar Restrictions**

(a) A description of any easement, covenant or other similar restriction affecting the land (whether registered or unregistered):

As set out in the attached copies of documents.

And the purchaser is to note that there may be sewers, drains, water pipes, underground and/or overhead electricity cables, underground and/or overhead telephone cables and underground gas pipes (if applicable) laid outside registered easements. If the National Broadband Network (NBN) is connected to the property, any NBN cables traversing the property constitute an unregistered easement. The Purchaser/s should make their own enquiries in this regard.

(b) Particulars of any existing failure to comply with that easement, covenant or other similar restriction are:

To the best of the vendors knowledge there is no existing failure to comply with the terms of any easement, covenant or other similar restriction, however, underground electricity cables, NBN Cables, telephone cables, sewers and drains may be laid outside registered easements. The Purchasers should make their own inquiries prior to committing to buy.

3.2 **Road Access**

There is access to the land by road.

3.3 **Designated Bushfire Prone Area**

The land is in not a designated bushfire prone area within the meaning of section 192A of the *Building Act* 1993.

3.4 **Planning Scheme**

Attached is a certificate with the required specified information.

Where the property is outside the metropolitan area (as defined in the **Sale of Land Act 1962 (Vic)**) the planning instrument may or may not prohibit the construction of a dwelling house on the property. The purchaser should conduct appropriate inquiries prior to committing to buy.

The property may be in an area which is subject to special overlays which control subdivisions, building heights, environmental, wildfire management, significant landscape, design and development, heritage and vegetation issues.

Proposed Planning Scheme Amendments - This property may be subject to Planning Scheme Amendments proposed by the Responsible Authority. The Purchasers should conduct appropriate inquiries prior to committing to buy.

4. NOTICES

4.1 **Notice, Order, Declaration, Report or Recommendation**

Particulars of any notice, order, declaration, report or recommendation of a public authority or government department or approved proposal directly and currently affecting the land, being a notice, order, declaration, report, recommendation or approved proposal of which the vendor might reasonably be expected to have knowledge:

Attached, if applicable, otherwise none to the Vendors knowledge.

4.2 **Agricultural Chemicals**

There are NO notices, property management plans, reports or orders in respect of the land issued by a government department or public authority in relation to livestock disease or contamination by agricultural chemicals affecting the ongoing use of the land for agricultural purposes. However, if this is not the case, the details of any such notices, property management plans, reports or orders, are as follows:

NIL

4.3 **Compulsory Acquisition**

The particulars of any notices of intention to acquire that have been served under section 6 of the *Land Acquisition and Compensation Act* 1986 are as follows:

NIL

The Vendor has no means of knowing of all decisions of public authorities and government departments affecting the land unless communicated to the Vendor at its current address.

5. BUILDING PERMITS

Particulars of any building permit issued under the *Building Act* 1993 in the preceding 7 years (required only where there is a residence on the land):

Are contained in the attached certificate (if any).

The Purchaser acknowledges that the Vendor makes no representation that the improvements on the land sold or any alterations or additions thereto comply with the requirements of the responsible authorities. The Purchaser acknowledges having inspected the property hereby sold and save as is otherwise expressly provided acknowledges that it is purchasing the property in its present condition and state of repair and that the Vendor is under no liability or obligation to the Purchaser to carry out any repairs, renovations, alterations or improvements to the property sold or to obtain any Permit or Final Inspection.

6. OWNERS CORPORATION

This section 6 only applies if the land is affected by an owners corporation within the meaning of the *Owners Corporations Act* 2006.

Not Applicable

7. GROWTH AREAS INFRASTRUCTURE CONTRIBUTION ("GAIC")

Words and expressions in this section 7 have the same meaning as in Part 9B of the *Planning and Environment Act* 1987.

Not Applicable

8. SERVICES

The services which are marked with an 'X' in the accompanying square box are NOT connected to the land:

Electricity supply ☐	Gas supply ☐	Water supply ☐	Sewerage ☐	Telephone services ☒

Services that are connected at the Date of Statement may not be connected at the Date of Settlement. The Purchaser is responsible to arrange for the connection of any services not connected.

9. TITLE

Attached are copies of the following documents:

9.1 ☒ (a) Registered Title

A Register Search Statement and the document, or part of a document, referred to as the 'diagram location' in that statement which identifies the land and its location.

10. SUBDIVISION

10.1 **Unregistered Subdivision**

This section 10.1 only applies if the land is subject to a subdivision which is not registered.

Not Applicable

10.2 **Staged Subdivision**

This section 10.2 only applies if the land is part of a staged subdivision within the meaning of section 37 of the *Subdivision Act* 1988.

Not Applicable

10.3 **Further Plan of Subdivision**

This section 10.3 only applies if the land is subject to a subdivision in respect of which a further plan within the meaning of the *Subdivision Act* 1988 is proposed.

Not Applicable

11. SWIMMING POOLS

In the event a swimming pool is on the land herein described, the purchaser may be required at its own expense to comply with the Building Regulations 2018, Regulation 137.

12. SELF CONTAINED SMOKE ALARMS

Since February 1997 all dwellings (as described under the regulations) will be required to have smoke detectors installed by January 31 1999, the purchaser is to ensure that smoke alarms exist or is required to install smoke alarms at its own expense.

13. DISCLOSURE OF ENERGY INFORMATION

(Disclosure of this information is not required under section 32 of the Sale of Land Act 1962 but may be included in this vendor statement for convenience.)

Details of any energy efficiency information required to be disclosed regarding a disclosure affected building or disclosure area affected area of a building as defined by the *Building Energy Efficiency Disclosure Act* 2010 (Cth)

(a) to be a building or part of a building used or capable of being used as an office for administrative, clerical, professional or similar based activities including any support facilities; and

(b) which has a net lettable area of at least 1000m²; (but does not include a building under a strata title system or if an occupancy permit was issued less than 2 years before the relevant date):

Not Applicable

14. DUE DILIGENCE CHECKLIST

(The Sale of Land Act 1962 provides that the vendor or the vendor's licensed estate agent must make a prescribed due diligence checklist available to purchasers before offering land for sale that is vacant residential land or land on which there is a residence. The due diligence checklist is NOT required to be provided with, or attached to, this vendor statement but the checklist may be attached as a matter of convenience.)

Is attached

15. ATTACHMENTS

(Any certificates, documents and other attachments may be annexed to this section 13)

(Additional information may be added to this section 13 where there is insufficient space in any of the earlier sections)

(Attached is an "Additional Vendor Statement" if section 1.3 (Terms Contract) or section 1.4 (Sale Subject to Mortgage) applies)

Due diligence checklist

What you need to know before buying a residential property

Before you buy a home, you should be aware of a range of issues that may affect that property and impose restrictions or obligations on you, if you buy it. This checklist aims to help you identify whether any of these issues will affect you. The questions are a starting point only and you may need to seek professional advice to answer some of them. You can find links to organisations and web pages that can help you learn more, by visiting the Due diligence checklist page on the Consumer Affairs Victoria website (consumer.vic.gov.au/duediligencechecklist).

Urban living

Moving to the inner city?

High density areas are attractive for their entertainment and service areas, but these activities create increased traffic as well as noise and odours from businesses and people. Familiarising yourself with the character of the area will give you a balanced understanding of what to expect.

Is the property subject to an owners corporation?

If the property is part of a subdivision with common property such as driveways or grounds, it may be subject to an owners corporation. You may be required to pay fees and follow rules that restrict what you can do on your property, such as a ban on pet ownership.

Growth areas

Are you moving to a growth area?

You should investigate whether you will be required to pay a growth areas infrastructure contribution.

Flood and fire risk

Does this property experience flooding or bushfire?

Properties are sometimes subject to the risk of fire and flooding due to their location. You should properly investigate these risks and consider their implications for land management, buildings and insurance premiums.

Rural properties

Moving to the country?

If you are looking at property in a rural zone, consider:

- Is the surrounding land use compatible with your lifestyle expectations? Farming can create noise or odour that may be at odds with your expectations of a rural lifestyle.
- Are you considering removing native vegetation? There are regulations which affect your ability to remove native vegetation on private property.
- Do you understand your obligations to manage weeds and pest animals?

Can you build new dwellings?

Does the property adjoin crown land, have a water frontage, contain a disused government road, or are there any crown licences associated with the land?

Is there any earth resource activity such as mining in the area?

You may wish to find out more about exploration, mining and quarrying activity on or near the property and consider the issue of petroleum, geothermal and greenhouse gas sequestration permits, leases and licences, extractive industry authorisations and mineral licences.

Soil and groundwater contamination

Has previous land use affected the soil or groundwater?

You should consider whether past activities, including the use of adjacent land, may have caused contamination at the site and whether this may prevent you from doing certain things to or on the land in the future.

Land boundaries

Do you know the exact boundary of the property?

You should compare the measurements shown on the title document with actual fences and buildings on the property, to make sure the boundaries match. If you have concerns about this, you can speak to your lawyer or conveyancer, or commission a site survey to establish property boundaries.

Planning controls

Can you change how the property is used, or the buildings on it?

All land is subject to a planning scheme, run by the local council. How the property is zoned and any overlays that may apply, will determine how the land can be used. This may restrict such things as whether you can build on vacant land or how you can alter or develop the land and its buildings over time.

The local council can give you advice about the planning scheme, as well as details of any other restrictions that may apply, such as design guidelines or bushfire safety design. There may also be restrictions – known as encumbrances – on the property's title, which prevent you from developing the property. You can find out about encumbrances by looking at the section 32 statement.

Are there any proposed or granted planning permits?

The local council can advise you if there are any proposed or issued planning permits for any properties close by. Significant developments in your area may change the local 'character' (predominant style of the area) and may increase noise or traffic near the property.

Safety

Is the building safe to live in?

Building laws are in place to ensure building safety. Professional building inspections can help you assess the property for electrical safety, possible illegal building work, adequate pool or spa fencing and the presence of asbestos, termites, or other potential hazards.

Building permits

Have any buildings or retaining walls on the property been altered, or do you plan to alter them?

There are laws and regulations about how buildings and retaining walls are constructed, which you may wish to investigate to ensure any completed or proposed building work is approved. The local council may be able to give you information about any building permits issued for recent building works done to the property, and what you must do to plan new work. You can also commission a private building surveyor's assessment.

Are any recent building or renovation works covered by insurance?

Ask the vendor if there is any owner-builder insurance or builder's warranty to cover defects in the work done to the property.

Utilities and essential services

Does the property have working connections for water, sewerage, electricity, gas, telephone and internet?

Unconnected services may not be available, or may incur a fee to connect. You may also need to choose from a range of suppliers for these services. This may be particularly important in rural areas where some services are not available.

Buyers' rights

Do you know your rights when buying a property?

The contract of sale and section 32 statement contain important information about the property, so you should request to see these and read them thoroughly. Many people engage a lawyer or conveyancer to help them understand the contracts and ensure the sale goes through correctly. If you intend to hire a professional, you should consider speaking to them before you commit to the sale. There are also important rules about the way private sales and auctions are conducted. These may include a cooling-off period and specific rights associated with 'off the plan' sales. The important thing to remember is that, as the buyer, you have rights.

Copyright State of Victoria. No part of this publication may be reproduced except as permitted by the
valid at the time and in the form obtained from the LANDATA REGD TM System. None of the State

The Victorian Government acknowledges the Traditional Owners of Victoria and pays respects to the
past, present and emerging.

REGISTER SEARCH STATEMENT (Title
Land Act 1958

VOLUME 12231 FOLIO 225

LAND DESCRIPTION

Lot 114 on Plan of Subdivision 740173P.
PARENT TITLE Volume 09464 Folio 465
Created by instrument PS740173P 09/07/202

REGISTERED PROPRIETOR

Estate Fee Simple
Sole Proprietor
HYHB PTY LTD of 4 SHIELD ROAD POINT CO
AT477334U 31/07/2020

ENCUMBRANCES, CAVEATS AND NOTICES

MORTGAGE AT477335S 31/07/2020
NATIONAL AUSTRALIA BANK LTD

COVENANT PS740173P 09/07/2020

Any encumbrances created by Section 98 Tr
24 Subdivision Act 1988 and any other encu
plan set out under DIAGRAM LOCATION below

AGREEMENT Section 173 Planning and Environmen
AR127990F 14/06/2018

DIAGRAM LOCATION

SEE PS740173P FOR FURTHER DETAILS AND BOUNDARIE

ACTIVITY IN THE LAST 125 DAYS

NIL

----------END OF REGISTER SEARCH ST

Additional information: (not part of the Register

Street Address: 9 FURNESS CLOSE WYNDHAM VALE VIC 3

ADMINISTRATIVE NOTICES

NIL

eCT Control 16089P NATIONAL AUSTRALIA BANK LTD
Effective from 31/07/2020

DOCUMENT END

Delivered from the LANDATA® System by InfoTrack Pty Ltd.
The information supplied by Triconvey2 (Reseller) has been obtained from InfoTrack Pty Limited by agreement between them. The information sup
of Victoria to provide this information via LANDATA® System.

Copyright State of Victoria. No part of this publication may be reproduced except as permitted by the Copyright Act 1968 (Cth), to comply with a statutory requirement or pursuant to a written agreement. The information is only valid at the time and in the form obtained from the LANDATA REGD TM System. None of the State of Victoria, its agents or contractors, accepts responsibility for any subsequent publication or reproduction of the information.

The Victorian Government acknowledges the Traditional Owners of Victoria and pays respects to their ongoing connection to their Country, History and Culture. The Victorian Government extends this respect to their Elders, past, present and emerging.

REGISTER SEARCH STATEMENT (Title Search) Transfer of Land Act 1958

VOLUME 12231 FOLIO 225

Security no : 124134006398A
Produced 22/04/2026 02:15 PM

LAND DESCRIPTION

Lot 114 on Plan of Subdivision 740173P.
PARENT TITLE Volume 09464 Folio 465
Created by instrument PS740173P 09/07/2020

REGISTERED PROPRIETOR

Estate Fee Simple
Sole Proprietor
HYHB PTY LTD of 4 SHIELD ROAD POINT COOK VIC 3030
AT477334U 31/07/2020

ENCUMBRANCES, CAVEATS AND NOTICES

MORTGAGE AT477335S 31/07/2020
NATIONAL AUSTRALIA BANK LTD

COVENANT PS740173P 09/07/2020

Any encumbrances created by Section 98 Transfer of Land Act 1958 or Section 24 Subdivision Act 1988 and any other encumbrances shown or entered on the plan set out under DIAGRAM LOCATION below.

AGREEMENT Section 173 Planning and Environment Act 1987
AR127990F 14/06/2018

DIAGRAM LOCATION

SEE PS740173P FOR FURTHER DETAILS AND BOUNDARIES

ACTIVITY IN THE LAST 125 DAYS

NIL

----------END OF REGISTER SEARCH STATEMENT----------

Additional information: (not part of the Register Search Statement)

Street Address: 9 FURNESS CLOSE WYNDHAM VALE VIC 3024

ADMINISTRATIVE NOTICES

NIL

eCT Control 16089P NATIONAL AUSTRALIA BANK LTD
Effective from 31/07/2020

DOCUMENT END

Delivered from the LANDATA® System by InfoTrack Pty Ltd.
The information supplied by Triconvey2 (Reseller) has been obtained from InfoTrack Pty Limited by agreement between them. The information supplied has been obtained by InfoTrack Pty Limited who is licensed by the State of Victoria to provide this information via LANDATA® System.

Imaged Document Cover Sheet

The document following this cover sheet is an imaged document supplied by LANDATA®, Secure Electronic Registries Victoria.

Document Type	**Plan**
Document Identification	**PS740173P**
Number of Pages (excluding this cover sheet)	**10**
Document Assembled	**22/04/2026 14:15**

Copyright and disclaimer notice:
© State of Victoria. This publication is copyright. No part may be reproduced by any process except in accordance with the provisions of the Copyright Act 1968 (Cth) and for the purposes of Section 32 of the Sale of Land Act 1962 or pursuant to a written agreement. The information is only valid at the time and in the form obtained from the LANDATA® System. None of the State of Victoria, LANDATA®, Secure Electronic Registries Victoria Pty Ltd (ABN 86 627 986 396) as trustee for the Secure Electronic Registries Victoria Trust (ABN 83 206 746 897) accept responsibility for any subsequent release, publication or reproduction of the information.

The document is invalid if this cover sheet is removed or altered.

Delivered from the LANDATA® System by InfoTrack Pty Ltd.
The information supplied by Triconvey2 (Reseller) has been obtained from InfoTrack Pty Limited by agreement between them. The information supplied has been obtained by InfoTrack Pty Limited who is licensed by the State of Victoria to provide this information via LANDATA® System.

PLAN OF SUBDIVISION

EDITION 2

PS740173P

LOCATION OF LAND

PARISH: WERRIBEE

TOWNSHIP: .....

SECTION: 9

CROWN PORTION: A (Part) & B (Part)

SECTION: 6

CROWN ALLOTMENT: 1A (Part) & 1B (Part)

TITLE REFERENCE: Vol. 9464 Fol. 465

LAST PLAN REFERENCE: Lot 12 on LP131455

POSTAL ADDRESS: 63 Wollahra Rise
(at time of subdivision) Wyndham Vale 3024

MGA CO-ORDINATES: E: 290 850 ZONE: 55
(of approx centre of land in plan) N: 5 805 670 GDA 94

Council Name: Wyndham City Council

Council Reference Number: WYS3410/15
Planning Permit Reference: WYP7729/14
SPEAR Reference Number: S073034E

Certification

This plan is certified under section 11 (7) of the Subdivision Act 1988
Date of original certification under section 6: 28/03/2018

Public Open Space

A requirement for public open space under section 18 of the Subdivision Act 1988 has not been made

Digitally signed by: Caitlin Anne Spratling for Wyndham City Council on 29/04/2019

Statement of Compliance issued: 26/06/2020

VESTING OF ROADS AND/OR RESERVES

IDENTIFIER	COUNCIL/BODY/PERSON
Roads R1	Wyndham City Council
Reserve No. 1	Wyndham City Council
Reserve No. 2	Powercor Australia Ltd

NOTATIONS

DEPTH LIMITATION: 15.24 metres applies to CA 1B (Part)

SURVEY:
This plan is based on survey.

STAGING:
This is not a staged subdivision.
Planning Permit No. WYP7729/14

THE GLEN - RELEASE 1
Area of Release: 2.342ha
No. of Lots: 40 Lots

NOTATIONS

Lots 101 - 140 (both inclusive) may be affected by one or more restrictions. Refer to Creation of Restrictions 1, 2, 3, 4, 5, 6 and 7 on Sheets 7, 8 and 9 of this plan for details.

EASEMENT INFORMATION

LEGEND: A - Appurtenant Easement E - Encumbering Easement R - Encumbering Easement (Road)

Easement Reference	Purpose	Width (Metres)	Origin	Land Benefited/In Favour Of
	SEE SHEET 2 FOR EASEMENT DETAILS			

TAYLORS
Urban Development | Built Environments | Infrastructure
8/270 Ferntree Gully Road, Notting Hill, Victoria, 3168
Tel: 61 3 9501 2800 | Web: taylorsds.com.au

SURVEYORS FILE REF: Ref. 02609-S1 Ver. 17

ORIGINAL SHEET SIZE: A3

SHEET 1 OF 9

Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E

PLAN REGISTERED
TIME:9.00am DATE: 09/07/2020

Assistant Registrar of Titles Denise Satti

PS740173P

EASEMENT INFORMATION

LEGEND: A - Appurtenant Easement E - Encumbering Easement R - Encumbering Easement (Road)

Easement Reference	Purpose	Width (Metres)	Origin	Land Benefited/In Favour Of
E-1	Drainage	10m	LP125673	Lots in LP125673
			LP131455	Lots in LP131455
			This Plan	Wyndham City Council
E-3	Drainage	See Diag.	This Plan	Wyndham City Council
E-4	Sewerage	See Diag.	This Plan	City West Water Corporation
	EASEMENTS E-5 TO E-14 (BOTH INCLUSIVE) HAVE BEEN OMITTED FROM THIS PLAN			
E-15	Drainage as specified & set out in MCP AA1106	See Diag.	AR649824M	Melbourne Water Corporation
E-16	Sewerage	See Diag.	AR649825K	City West Water Corporation
E-17	Drainage as specified & set out in MCP AA1106	See Diagram	AR649824M	Melbourne Water Corporation
	Drainage		LP125673	Lots in LP125673
			LP131455	Lots in LP131455
			This Plan	Wyndham City Council
E-18	Sewerage	See Diagram	AR649825K	City West Water Corporation
	Drainage		LP125673	Lots in LP125673
			LP131455	Lots in LP131455
			This Plan	Wyndham City Council
E-19	Drainage as specified & set out in MCP AA1106	See Diagram	AR649824M	Melbourne Water Corporation
	Sewerage		AR649825K	City West Water Corporation
E-20	Sewerage	See Diagram	AR649825K	City West Water Corporation
	Drainage as specified & set out in MCP AA1106		AR649824M	Melbourne Water Corporation
	Drainage		LP125673	Lots in LP125673
			LP131455	Lots in LP131455
			This Plan	Wyndham City Council

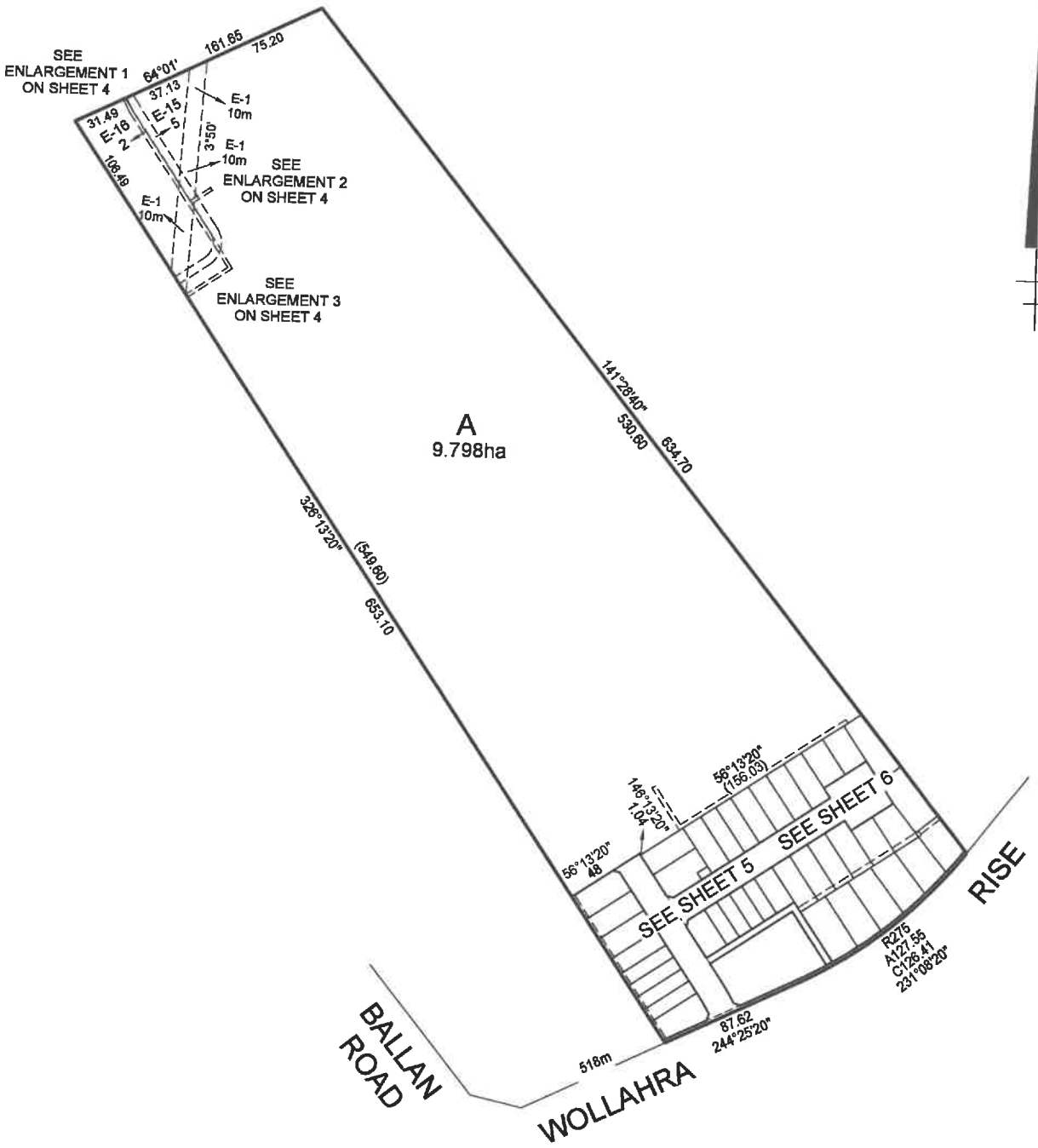
TAYLORS
Urban Development | Built Environments | Infrastructure
8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168
Tel: 61 3 9501 2800 | Web: taylorsds.com.au

ORIGINAL SHEET SIZE: A3 | Ref. 02609-S1 Ver. 17 | SHEET 2

Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E

Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E

PS740173P



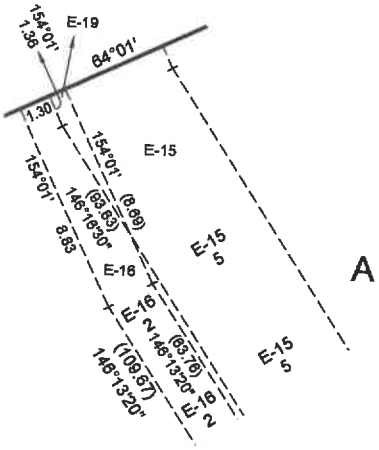
TAYLORS
Urban Development | Built Environments | Infrastructure
8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168
Tel: 61 3 9501 2800 | Web: taylorsds.com.au

SCALE		ORIGINAL SHEET		
1:2500	25 0 25 50 75 100 LENGTHS ARE IN METRES	SIZE: A3	Ref. 02609-S1 Ver. 17	SHEET 3

Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E

Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E

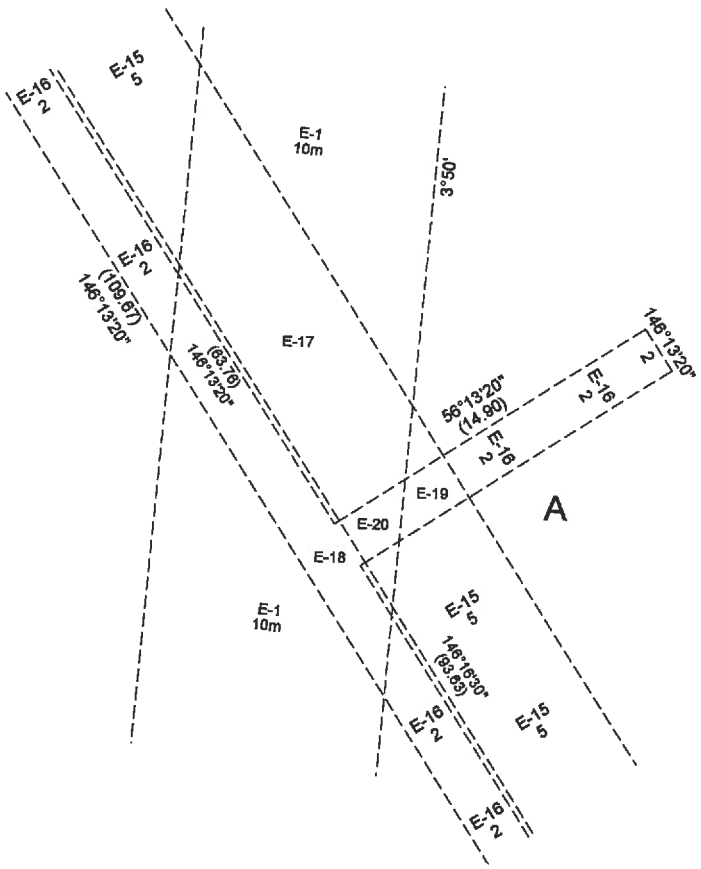
PS740173P



SCALE OF ENLARGEMENT 1

1:200

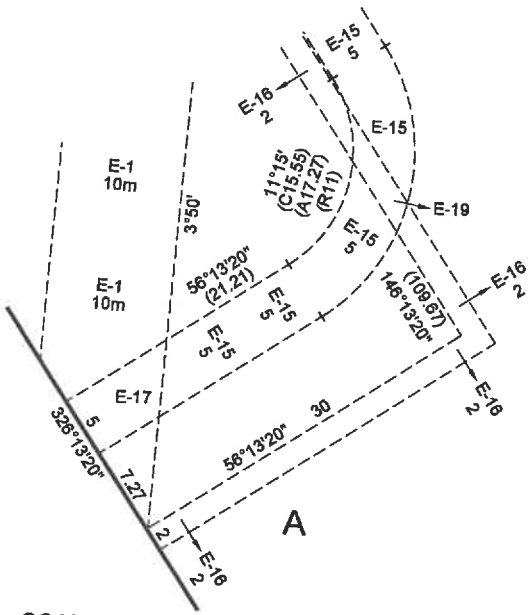
2 0 2 4 6 8



SCALE OF ENLARGEMENT 2

1:200

2 0 2 4 6 8



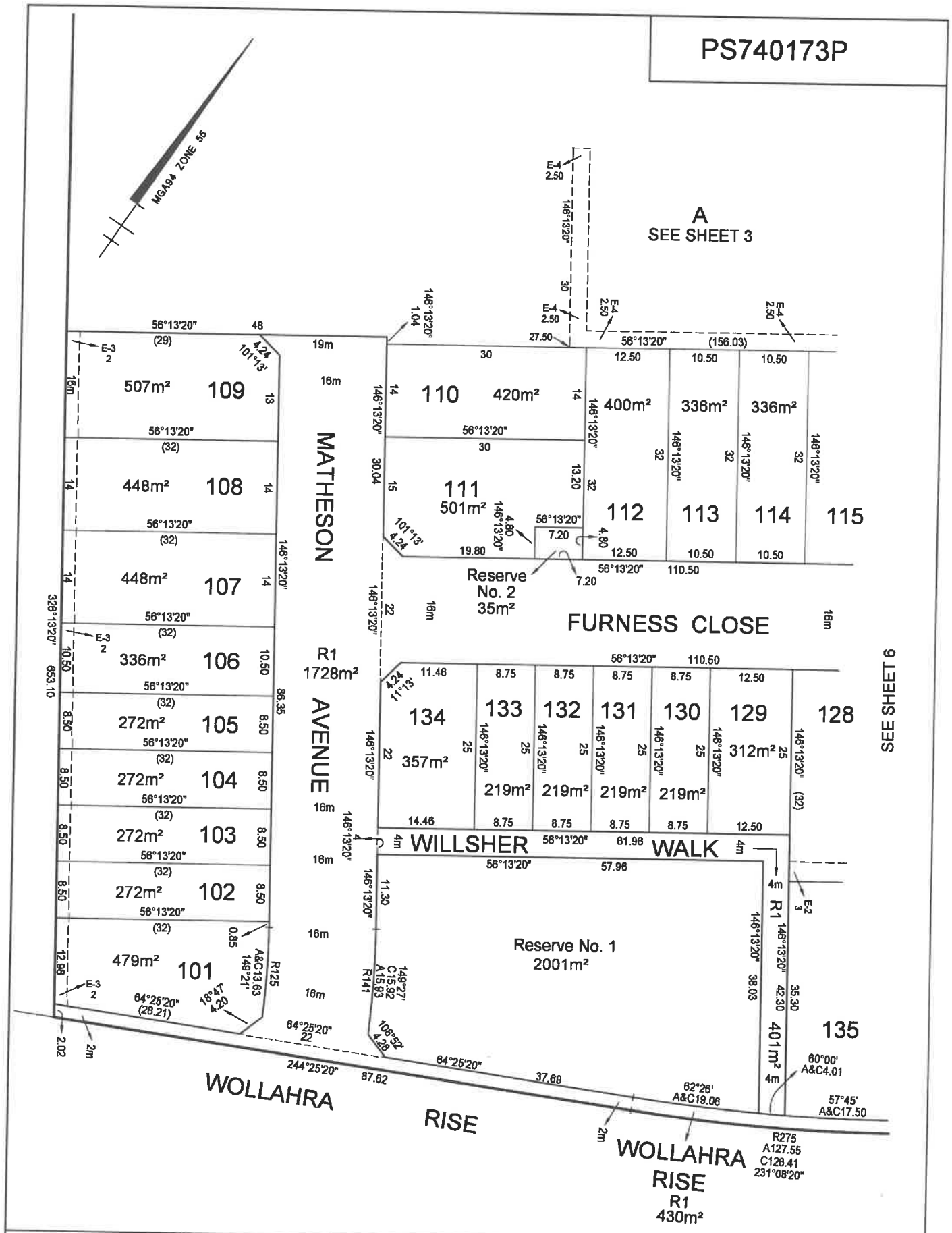
SCALE OF ENLARGEMENT 3

1:400

4 0 4 8 12 16

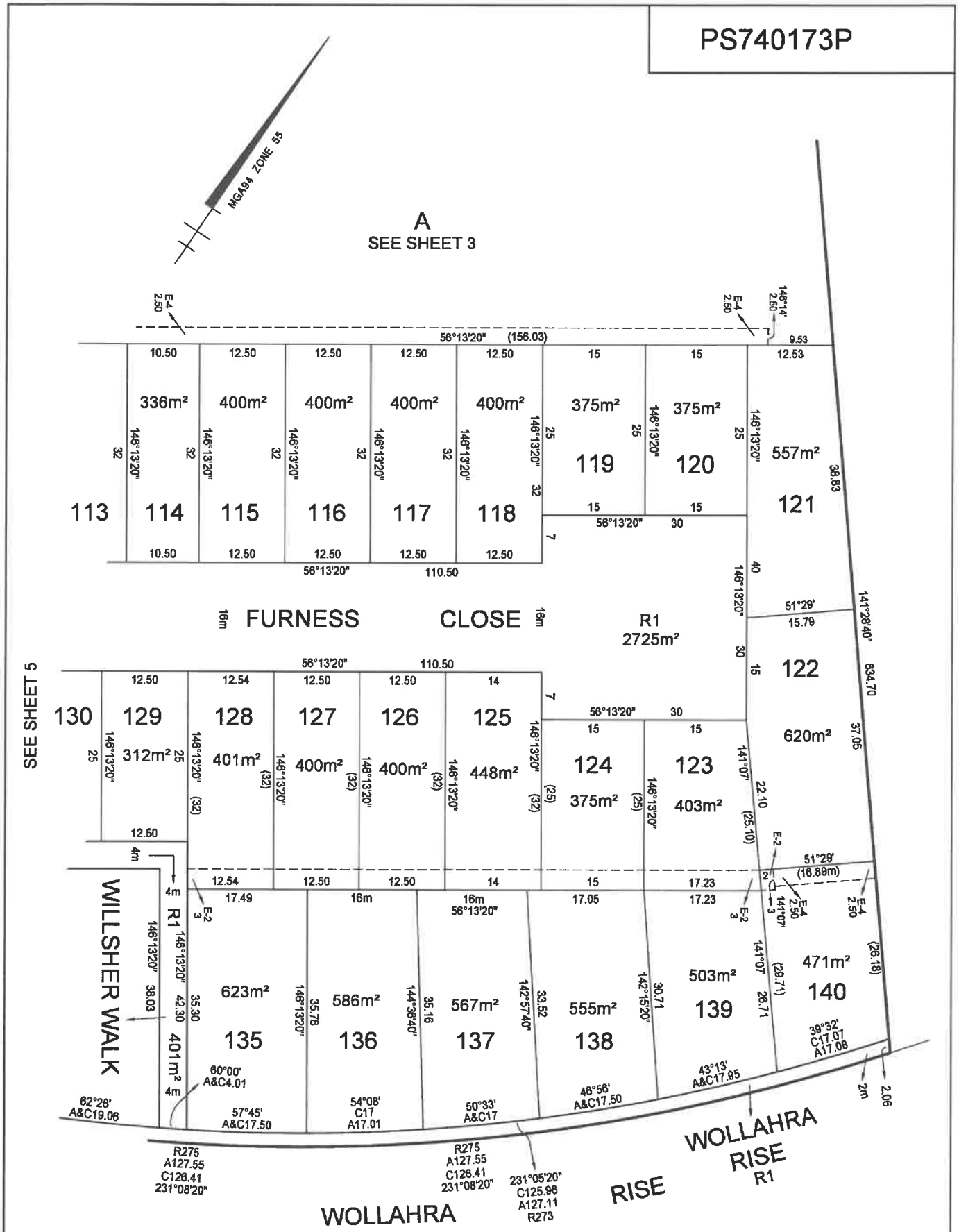
TAYLORS Urban Development | Built Environments | Infrastructure 8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168 Tel: 61 3 9501 2800 | Web: taylorsds.com.au		ORIGINAL SHEET SIZE: A3	Ref. 02609-S1 Ver. 17	SHEET 4
	Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E	Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E		

PS740173P



TAYLORS Urban Development | Built Environments | Infrastructure 8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168 Tel: 61 3 9501 2800 | Web: taylorsds.com.au	SCALE 1:500	5 0 5 10 15 20 LENGTHS ARE IN METRES	ORIGINAL SHEET SIZE: A3	Ref. 02609-S1 Ver. 17
	Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E		Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E	SHEET 5

PS740173P



TAYLORS Urban Development | Built Environments | Infrastructure *8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168* ***Tel:** 61 3 9501 2800 | **Web:** taylorsds.com.au*	SCALE 1:500	5 0 5 10 15 20 LENGTHS ARE IN METRES	ORIGINAL SHEET SIZE: A3	Ref. 02609-S1 Ver. 17	SHEET 6
	Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E		Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E		

CREATION OF RESTRICTION 1

PS740173P

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: See Table 1
LAND TO BENEFIT: See Table 1

TABLE 1

BURDENED LOT No.	BENEFITING LOTS ON THIS PLAN
101	102
106	105, 107
107	106, 108
108	107, 109
109	108
110	111, 112
111	110, 112
112	110, 111, 113
113	112, 114
114	113, 115
115	114, 116
116	115, 117
117	116, 118
118	117, 119
119	118, 120
120	119, 121

TABLE 1 continued

BURDENED LOT No.	BENEFITING LOTS ON THIS PLAN
121	120, 122
122	121, 123, 140
123	122, 124, 139, 140
124	123, 125, 138
125	124, 126, 137, 138
126	125, 127, 136, 137
127	126, 128, 135, 136
128	127, 129, 135
129	128, 130
134	133
135	127, 128, 136
136	126, 127, 135, 137
137	125, 126, 136, 138
138	124, 125, 137, 139
139	123, 138, 140
140	122, 123, 139

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies must not build or erect or allow to be built or erected any building or structure, other than a building or structure which is built or erected in accordance with the provisions of Memorandum of Common Provisions registered in dealing no. AA4786 without the written approval of Baycrown Pty Ltd and Wyndham City Council. The provisions of the said MCP are incorporated into this restriction.

This Restriction shall cease to have effect 5 years after this Plan of Subdivision has been registered.

TAYLORS
Urban Development | Built Environments | Infrastructure
8 / 270 Ferntree Gully Road, Notting Hill, Victoria, 3168
Tel: 61 3 9501 2800 | Web: taylorsds.com.au

Digitally signed by: Mark Peter Grey, Licensed Surveyor, Surveyor's Plan Version (17), 26/03/2019, SPEAR Ref: S073034E

Digitally signed by: Wyndham City Council, 29/04/2019, SPEAR Ref: S073034E

CREATION OF RESTRICTION 2

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: Lots 101 to 103 (both inclusive) and 130 to 134 (both inclusive) on this plan.
LAND TO BENEFIT: Lots 101 to 103 (both inclusive) and 130 to 134 (both inclusive) on this plan.

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies must not build or erect or allow to be built or erected any front fence which is more than 1.2 metres high and which is not visually permeable.

CREATION OF RESTRICTION 3

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: Lots 101, 109 and 111 on this plan.
LAND TO BENEFIT: Lots 101, 109 and 111 on this plan.

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies must not build or erect or allow to be built or erected any boundary fence which is more than 1.2 metres high forward of the front wall of the dwelling.

CREATION OF RESTRICTION 4

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: Lots 101 to 140 (both inclusive) on this plan.
LAND TO BENEFIT: Lots 101 to 140 (both inclusive) on this plan.

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies must not build or erect or allow to be built or erected any dwelling unless the dwelling incorporates dual plumbing for recycled water supply for toilet flushing and garden watering.

This restriction shall cease to have affect for the burdened lot after the issue of the certificate of occupancy (or the like) under the building act for the whole of a dwelling on that lot.

CREATION OF RESTRICTION 5

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: Lots 102 to 105 (both inclusive) and 130 to 133 (both inclusive) on this plan.
LAND TO BENEFIT: Relevant abutting lots on PS740173P.

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies:

1. must not build or permit to be built a building that is not free standing within the title boundaries of the lot on which it is built.

3. must not build or permit to be built a building that relies on the walls and floor slabs of adjacent buildings for support.

This restriction shall cease to have affect for the burdened lot after the issue of the certificate of occupancy (or the like) under the building act for the whole of a dwelling on that lot.

CREATION OF RESTRICTION 6

PS740173P

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: See Table 2
LAND TO BENEFIT: See Table 2

TABLE 2

BURDENED LOT No.	BENEFITING LOTS ON THIS PLAN
102	101, 103
103	102, 104
104	103, 105
105	104, 106
130	129, 131
131	130, 132
132	131, 133
133	132, 134

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot on this plan must not build or permit to be built or remain on the lot any building other than a building which has been constructed in accordance with the small lot housing code (Type A) incorporated into the Wyndham Planning Scheme unless a planning permit is granted by the responsible authority for a building that does not conform with the small lot housing code.

This restriction shall cease to apply to any building on the lot after the issue of a certificate of occupancy for the whole of a dwelling on the lot.

CREATION OF RESTRICTION 7

The following Restriction is to be created upon Registration of this plan.

LAND TO BE BURDENED: Lots 130 to 133 (both inclusive) on this plan.
LAND TO BENEFIT: Lots 130 to 133 (both inclusive) on this plan.

DESCRIPTION OF RESTRICTION

The registered proprietor or proprietors for the time being of any burdened lot to which this restriction applies must not build or erect or allow to be built or erected any dwelling unless the dwelling fronts Willsher Walk.

This restriction shall cease to have affect for the burdened lot after the issue of the certificate of occupancy (or the like) under the building act for the whole of a dwelling on that lot.

MODIFICATION TABLE

RECORD OF ALL ADDITIONS OR CHANGES TO THE PLAN

PLAN NUMBER

PS740173P

WARNING: THE IMAGE OF THIS DOCUMENT OF THE REGISTER HAS BEEN DIGITALLY AMENDED. NO FURTHER AMENDMENTS ARE TO BE MADE TO THE ORIGINAL DOCUMENT OF THE REGISTER.

AFFECTED LAND/PARCEL	LAND/PARCEL IDENTIFIER CREATED	MODIFICATION	DEALING NUMBER	DATE	EDITION NUMBER	ASSISTANT REGISTRAR OF TITLES
LOT A		REMOVAL OF EASEMENT E-2	PS746264D	27/07/20	2	RH

Imaged Document Cover Sheet

The document following this cover sheet is an imaged document supplied by LANDATA®, Secure Electronic Registries Victoria.

Document Type	**Instrument**
Document Identification	**AR127990F**
Number of Pages (excluding this cover sheet)	**21**
Document Assembled	**22/04/2026 14:15**

Copyright and disclaimer notice:
© State of Victoria. This publication is copyright. No part may be reproduced by any process except in accordance with the provisions of the Copyright Act 1968 (Cth) and for the purposes of Section 32 of the Sale of Land Act 1962 or pursuant to a written agreement. The information is only valid at the time and in the form obtained from the LANDATA® System. None of the State of Victoria, LANDATA®, Secure Electronic Registries Victoria Pty Ltd (ABN 86 627 986 396) as trustee for the Secure Electronic Registries Victoria Trust (ABN 83 206 746 897) accept responsibility for any subsequent release, publication or reproduction of the information.

The document is invalid if this cover sheet is removed or altered.

Delivered from the LANDATA® System by InfoTrack Pty Ltd.
The information supplied by Triconvey2 (Reseller) has been obtained from InfoTrack Pty Limited by agreement between them. The information supplied has been obtained by InfoTrack Pty Limited who is licensed by the State of Victoria to provide this information via LANDATA® System.

Application by a Responsible Authority for the making of a Recording of an Agreement

Section 181 **Planning and Environment Act 1987**

AR127990F
14/06/2018 $94.60 173

Lodged by:

Name:	MADDOCKS
Phone:	03 9258 3555
Address:	Collins Square, Tower Two, Level 25, 727 Collins Street Melbourne VIC 3008
Ref:	TGM:7090456
Customer Code:	1167E

The Authority having made an agreement referred to in section 181(1) of the **Planning and Environment Act 1987** requires a recording to be made in the Register for the land.

Land: Volume 9464 Folio 465

Responsible Authority: Wyndham City Council of 45 Princes Highway, Werribee, Victoria

Section and Act under which agreement made: Section 173 of the *Planning and Environment Act 1987*

A copy of the agreement is attached to this application

Signing

AUSTRALIAN LEGAL PRACTITIONER

Representing: Representing another

Signer Name: TERENCE MONTEBELLO.

Signer Organisation: MADDOCKS

Signer Role: Australian Legal Practitioner

Certifications

1. The Certifier has taken reasonable steps to verify the identity of the applicant.

2. The Certifier holds a properly completed Client Authorisation for the Conveyancing Transaction including this Registry Instrument or Document.

3. The Certifier has retained the evidence supporting this Registry Instrument or Document.

4. The Certifier has taken reasonable steps to ensure that this Registry Instrument or Document is correct and compliant with relevant legislation and any Prescribed Requirement.

Executed on behalf of: Wyndham City Council

Signer Name: TERRENCE MONTEBELLO

Signer Organisation: MADDOCKS

Signer Role: Australian Legal Practitioner

AR127990F
14/06/2018 $94.60 173

Signature:

Execution Date: 12 June 2018

TERRENCE MATTHEW GEORGE MONTEBELLO
727 Collins St, Melbourne 3008
An Australian legal practitioner
within the meaning of the Legal
Profession Uniform Law (Victoria)

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 3 of 21

AR127990F
14/06/2018 $94.60 173

Date 5 / 6 / 2018

Agreement under section 173 of the Planning and Environment Act 1987

Subject Land: 63 Wollahra Rise, Wyndham Vale

Purpose: WIK Agreement for Open Space Equalisation

City of Wyndham

and

Baycrown Pty Ltd
ACN 062 665 883

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 4 of 21

AR127990F
14/06/2018 $94.60 173

Contents

1. **Definitions** 4
2. **Interpretation** 5
3. **Purposes and Reasons for Agreement** 6
4. **Public Open Space** 6
   - 4.1 Open Space Land 6
   - 4.2 Time for transfer or vesting of Open Space Land 6
   - 4.3 Value of Open Space Land 7
   - 4.4 Over provision 7
   - 4.5 Environmental Assessment 8
5. **Further obligations of the Parties** 8
   - 5.1 Transaction costs 8
   - 5.2 Notice and registration 8
   - 5.3 Further actions 8
   - 5.4 Fees 8
   - 5.5 Council's costs to be paid 8
   - 5.6 Time for determining satisfaction 9
   - 5.7 Overdue fee for overdue money 9
6. **Agreement under section 173 of the Act** 9
7. **Owner's warranties** 9
8. **Successors in title** 10
9. **General matters** 10
   - 9.1 Notices 10
   - 9.2 No waiver 10
   - 9.3 Severability 10
   - 9.4 No fettering of Council's powers 10
   - 9.5 Inspection of documents 10
   - 9.6 Counterparts 10
   - 9.7 Governing law 11
10. **GST** 11
11. **GAIC** 11
12. **Commencement of Agreement** 11
13. **Amendment of Agreement** 11
14. **Ending of Agreement** 12

Schedule 1 13
Schedule 2 14
Schedule 3 16
Schedule 4 17

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 5 of 21

Maddocks

Agreement under section 173 of the Planning and Environment Act 1987

AR127990F
14/06/2018 $94.60 173

Dated 5 / 6 / ~~2017~~ 2018

Parties

Name	**Wyndham City Council**
Address	Civic Centre, 45 Princes Highway, Werribee, Victoria 3030
Short name	**Council**

Name	**Baycrown Pty Ltd ACN 062 665 883**
Address	Unit 3 51 Newheath Drive Arundel QLD 4214
Short name	**Owner**

Background

A. Council is the responsible authority for the Planning Scheme.

B. The Owner is the registered proprietor of the Subject Land.

C. Condition 22 of the Planning Permit requires a contribution to be made in accordance with the Required Public Open Space Contribution. The actual contribution being made of Open Space Land is greater than the required Public Open Space Contribution.

D. Council has agreed to pay to the Owner an amount representing the actual contribution which is made in excess of the Clause 52.01 Public Open Space Contribution.

E. Council has agreed that the Owner will transfer the Open Space Land when required to do so by Council.

F. As at the date of this Agreement, the Subject Land is subject to a mortgage in favour of the Mortgagee. The Mortgagee consents to the Owner entering into this Agreement.

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 6 of 21

AR127990F
14/06/2018 $94.60 173

The Parties agree:

1. Definitions

In this Agreement unless the context admits otherwise:

Act means the *Planning and Environment Act* 1987.

Agreement means this Deed and includes this Deed as amended from time to time.

Consent Fee means the fee specified on Council's internet web site which is payable by a person to Council for deciding whether to give consent for anything an agreement or a permit provides must not be done without Council's consent.

Current Address means:

- for Council, the address shown on page one of this Agreement, or any other address listed on Council's website; and
- for the Owner, the address shown on page one of this Agreement or any other address provided by the Owner to Council for any purpose relating to the Subject Land.

Current Email means:

- the Council email address listed on Council's website; and
- for the Owner, any email address provided by the Owner to Council for the express purpose of electronic communication regarding this Agreement.

Developable Land means the area of land identified as developable land in the land use budget of the Development Contributions Plan.

Endorsed Plan means the plan endorsed with the stamp of Council from time to time as the plan which forms part of the Planning Permit.

GAIC means the Growth Areas Infrastructure Charge under the Act.

GST Act means the *New Tax System (Goods and Services Tax) Act 1999* (Cwlth), as amended from time to time.

Inherent GAIC Liability means the current or future liability of the Subject Land for GAIC upon the happening of a GAIC event as defined and described in the Act.

Mortgagee means the person or persons registered or entitled from time to time to be registered by the Registrar of Titles as Mortgagee of the Subject Land or any part of it.

Open Space Land means land for public open space described in Schedule 2 and which may also be identified in the plan at Annexure "A".

Open Space Land Value means the amount specified in Schedule 2 as the Open Space Land Value or an amount determined by applying the methodology set out in Schedule 2 as the case may be.

Owner means the person or persons registered or entitled from time to time to be registered by the Registrar of Titles as proprietor or proprietors of an estate in fee simple of the Subject

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 7 of 21

Land or any part of the Subject Land and includes any Mortgagee-in-possession but does not include the Owner of a Residential Lot or a person who has transferred or otherwise disposed of all of their interests in the Subject Land.

Party or Parties means the Parties to this Agreement but does not include a person who has transferred or otherwise disposed of all of their interests in the Subject Land.

Plan Checking Fee means the fee payable to Council by the Owner for checking plans for an Infrastructure Project in the amount of 0.75% of the Infrastructure Project Value.

Plan of Subdivision means a plan of subdivision which creates an additional lot which can be disposed of separately or which is intended to be used for a dwelling or which can be re-subdivided.

Planning Permit means the planning permit specified in Schedule 4 as amended from time to time.

Planning Scheme means the Wyndham Planning Scheme and any other planning scheme that applies to the Subject Land.

Precinct Structure Plan or PSP means the precinct structure plan set out in Schedule 1.

Provision Trigger means the provision trigger or milestone set out in the relevant columns of Schedule 2.

Residential Lot means a lot created by subdivision of the Subject Land which, in the opinion of Council, is of a size and dimension intended to be developed as a housing lot without further subdivision.

Satisfaction Fee means a fee specified on Council's internet web site which is payable by a person to Council for deciding whether any one of obligation in a permit, agreement or any other requirement has been undertaken to Council's satisfaction.

Schedule means a schedule to this Agreement.

Stage is a reference to a stage of subdivision of the Subject Land.

Statement of Compliance means a Statement of Compliance under the *Subdivision Act 1988*.

Subject Land means the land described in Schedule 4 and any reference to the Subject Land in this Agreement includes any lot created by the subdivision of the Subject Land or any part of it.

2. Interpretation

AR127990F
14/06/2018 $94.60 173

In this Agreement unless the context admits otherwise:

2.1 the singular includes the plural and vice versa;

2.2 a reference to a gender includes all genders;

2.3 a reference to a person includes a reference to a firm, corporation or other corporate body and that person's successors in law;

2.4 any agreement, representation, warranty or indemnity by 2 or more persons (including where 2 or more persons are included in the same defined term) binds them jointly and severally;

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 8 of 21

2.5 a term used has its ordinary meaning unless that term is defined in this Agreement. If a term is not defined in this Agreement and it is defined in the Act, it has the meaning as defined in the Act;

2.6 a reference to an Act, regulation or the Planning Scheme includes any Act, regulation or amendment amending, consolidating or replacing the Act, regulation or Planning Scheme;

2.7 the Background forms part of this Agreement;

2.8 the Owner's obligations take effect as separate and several covenants which are annexed to and run at law and equity with the Subject Land; and

2.9 any reference to a clause, page, condition, attachment or term is a reference to a clause, page, condition, attachment or term of this Agreement.

AR127990F
14/05/2018 $94.60 173

3. Purposes and Reasons for Agreement

The Parties acknowledge and agree that the purposes of this Agreement are to:

3.1 enable the Owner to satisfy condition 22 of the Planning Permit;

3.2 to record the terms and conditions on which Open Space Land will be provided to Council and the terms and conditions on which any over - provision of Open Space Land in respect of the Subject Land will be dealt with; and

3.3 achieve and advance the objectives of planning in Victoria and the objectives of the Planning Scheme in respect of the Subject Land.

4. Public Open Space

4.1 Open Space Land

The Owner must transfer to or vest in Council for municipal purposes as directed by Council, the Open Space Land:

4.1.1 in accordance with the relevant Provision Trigger;

4.1.2 in compliance with relevant conditions of the Planning Permit;

4.1.3 free of all encumbrances and any structure, debris, waste, refuse and contamination, except as agreed by Council;

4.1.4 with all services to be available or connected as specified in the relevant column of Schedule 2; and

4.1.5 in a condition that is to the satisfaction of Council in its capacity as Development Agency.

4.2 Time for transfer or vesting of Open Space Land

The Owner agrees that if the Owner does not meet the Provision Trigger for any Open Space Land:

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 9 of 21

AR127990F
14/06/2018 $94.60 173

4.2.1 Council may refuse to issue any Statements of Compliance in respect of the development of the Subject Land until the Open Space Land has been transferred to or vested in Council; or

4.2.2 at its absolute discretion, in writing, extend the timeframe.

4.3 Value of Open Space Land

The Owner agrees that:

4.3.1 the Open Space Land Value:

(a) is the fixed amount as specified in Schedule 2 or alternatively is a fixed amount determined by applying the methodology set out in Schedule 2, as the case may be;

(b) is deemed to include all transfer costs, costs of plans of subdivision, registration fees and the like and any other amount specifically agreed to in writing by Council;

(c) replaces the market value and any other method of calculating compensation payable to a person under the *Land Acquisition and Compensation Act 1986* and the Act in respect of the Open Space Land; and

4.3.2 upon

(a) the transfer of the Open Space Land to Council or the vesting of the Open Space Land in Council in satisfaction of the whole or part of its open space contribution liabilities under clause 52.01 of the Planning Scheme; and

(b) payment being made to the Owner in accordance with this Agreement –

no other compensation will be claimed by the Owner or is to be paid to the Owner for the effect of severance or for solatium as those terms or concepts are understood in the context of the *Land Acquisition and Compensation Act 1986* or for any other category of or form of loss or compensation in respect of the Open Space Land.

4.4 Over provision

The Parties agree that:

4.4.1 as the Open Space Land that the Owner is obliged to transfer to or vest in Council under this Agreement is greater than the total public open space contributions that the Owner is required to make under clause 52.01 of the Planning Scheme in respect of the Subject Land, Council must reimburse the Owner the over-provision by way of a monetary payment to the Owner so as to equalise the open space contribution payable by the Owner to the amount specified in clause 52.01 of the Planning Scheme in respect of the Subject Land; and

4.4.2 as a monetary payment is due to be paid to the Owner under clause 4.4.1, the monetary payment to the Owner must be paid to the Owner within a timeframe agreed in writing between the Parties prior to the Statement of Compliance for the final stage of the subdivision of the Subject Land.

AR127990F
14/06/2018 $94.60 173

4.5 Environmental Assessment

The Owner covenants and agrees that prior to transferring to or vesting the Open Space Land to or in Council, the Owner must provide Council with an environmental assessment prepared by a properly qualified environmental consultant that clearly and unequivocally states that the Open Space Land is suitable to be used and developed for the purpose for which it is intended to be used.

---

5. Further obligations of the Parties

5.1 Transaction costs

The Owner covenants and agrees that where the Owner is required to transfer to or vest Open Space Land in Council, the Owner is responsible for the payment of all costs and disbursements associated with that transfer or vesting as the case may be.

5.2 Notice and registration

The Owner covenants and agrees that the Owner must bring this Agreement to the attention of all prospective occupiers, purchasers, lessees, licensees, mortgagees, chargees, transferees and assigns.

5.3 Further actions

The Owner covenants and agrees that the Owner:

5.3.1 must do all things necessary to give effect to this Agreement;

5.3.2 consents to Council applying to the Registrar of Titles to record this Agreement on the Certificate of Title of the Subject Land in accordance with section 181 of the Act; and

5.3.3 agrees to do all things necessary to enable Council to do so, including:

(a) sign any further agreement, acknowledgment or document; and

(b) obtain all necessary consents to enable the recording to be made.

5.4 Fees

The Owner covenants and agrees that within 14 days of a written request for payment, the Owner must pay to Council any:

5.4.1 Plan Checking Fee;

5.4.2 Satisfaction Fee; or

5.4.3 Consent Fee

as required.

5.5 Council's costs to be paid

The Owner covenants and agrees that the Owner must pay to Council within 14 days after a written request for payment, Council's costs and expenses (including reasonable legal expenses) relating to this Agreement, including:

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 11 of 21

5.5.1 drafting, finalising, signing, and recording this Agreement;

5.5.2 drafting, finalising and recording any amendment to this Agreement; and

5.5.3 drafting, finalising and recording any document to give effect to the ending of this Agreement.

AR127990F
14/06/2018 $94.60 173

5.6 Time for determining satisfaction

If Council makes a request for payment of:

5.6.1 a fee under clause 5.4; or

5.6.2 any costs or expenses under clause 5.5

the Parties agree that Council will not decide whether the Owner's obligation has been undertaken to Council's satisfaction, or whether to grant the consent sought, until payment has been made to Council in accordance with the request.

5.7 Overdue fee for overdue money

The Owner agrees that:

5.7.1 the Owner must pay to Council an overdue fee to be calculated in accordance on the same basis as an amount under section 172 of the *Local Government Act* 1989 on any amount due under this Agreement that is not paid by the due date.

5.7.2 if any amount due under this provision is owing, and not paid, Council will apply any payment made first towards the overdue fee due under this provision and then any balance of the payment will be applied to the original amount outstanding.

6. Agreement under section 173 of the Act

The Parties agree that without limiting or restricting the respective powers to enter into this Agreement, and insofar as it can be so treated, this Agreement is made as a deed in accordance with section 173 of the Act.

7. Owner's warranties

7.1 The Owner warrants that apart from the Owner and any other person who has consented in writing to this Agreement, no other person has any interest, either legal or equitable, in the Subject Land which may be affected by this Agreement.

7.2 The Owner warrants that:

7.2.1 the Open Space Land is free of contamination of any kind; and

7.2.2 is in an environmental condition such as to be suitable to be used and developed for the purpose for which it is intended to be used.

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 12 of 21

8. Successors in title

The Owner covenants and agrees that until such time as a memorandum of this Agreement is recorded on the certificate of titles of the Subject Land, the Owner must require successors in title to:

8.1 give effect to this Agreement; and

8.2 enter into a deed agreeing to be bound by the terms of this Agreement.

AR127990F
14/06/2018 $94.60 173

9. General matters

9.1 Notices

A notice or other communication required or permitted to be served by a Party on another Party must be in writing and may be served:

9.1.1 personally on the other Party;

9.1.2 by leaving it at the other Party's Current Address;

9.1.3 by posting it by prepaid post addressed to the other Party at the other Party's Current Address; or

9.1.4 by email to the other Party's Current Email.

9.2 No waiver

Any time or other indulgence granted by Council to the Owner or any variation of this Agreement or any judgment or order obtained by Council against the Owner does not amount to a waiver of any of Council's rights or remedies under this Agreement.

9.3 Severability

If a court, arbitrator, tribunal or other competent authority determines that any part of this Agreement is unenforceable, illegal or void then that part is severed with the other provisions of this Agreement remaining operative.

9.4 No fettering of Council's powers

The Owner acknowledges agrees that this Agreement does not fetter or restrict Council's power or discretion to make decisions or impose requirements or conditions in connection with the grant of planning approvals or certification of plans subdividing the Subject Land or relating to use or development of the Subject Land.

9.5 Inspection of documents

A copy of any planning permit, document or plan referred to in this Agreement is available for inspection at Council offices during normal business hours upon giving the Council reasonable notice.

9.6 Counterparts

This Agreement may be executed in any number of counterparts. All counterparts together will be taken to constitute one instrument.

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 13 of 21

AR127990F
14/06/2018 $94.80 173

9.7 Governing law

The Parties agree that this Agreement is governed by and is to be construed in accordance with the laws of Victoria.

10. GST

10.1 In this clause words that are defined in the GST Act have the same meaning as their definition in that Act.

10.2 Except as otherwise provided by this clause, all consideration payable under this Agreement in relation to any supply is exclusive of GST.

10.3 If GST is payable in respect of any supply made by a supplier under this Agreement, subject to clause 10.4 the recipient will pay to the supplier an amount equal to the GST payable on the supply at the same time and in the same manner as the consideration for the supply is to be provided under this Agreement.

10.4 The supplier must provide a tax invoice to the recipient before the supplier will be entitled to payment of the GST payable under clause 10.3.

11. GAIC

11.1 The Owner acknowledges and agrees that apart from the land specified in Schedule 3, all land transferred to or vested in Council must have any Inherent GAIC Liability discharged prior to it being transferred to or vested in Council and to the extent it is not, the Owner shall remain liable to Council for any GAIC liability incurred by Council.

11.2 The Parties agree that clause 11.1 survives the termination of this Agreement

11.3 The Owner agrees that the Owner must provide a certificate of release under section 201SY of the Act confirming the release of the land referred to in clause 11.1 from its inherent GAIC liability.

12. Commencement of Agreement

This Agreement commences on the date of this Agreement.

13. Amendment of Agreement

13.1 This Agreement may be amended in accordance with the Act.

13.2 If notice of a proposal to amend this Agreement is required pursuant to section 178C of the Act, the parties agree that only Council and the Owner of the Subject Land or that part of the Subject Land that is the subject of the proposal to amend this Agreement are required to be notified of the proposal.

13.3 If a proposal is made to amend this Agreement under section 178C of the Act, the Mortgagee is to be notified of that proposal.

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 14 of 21

AR127990F
14/06/2018 $94.60 173

14. Ending of Agreement

14.1 This Agreement ends:

14.1.1 when the Owner has complied with all of the Owner's obligations under this Agreement; or

14.1.2 otherwise by agreement between the Parties in accordance with section 177 of the Act.

14.2 Upon the issue of a Statement of Compliance for a plan of subdivision for any Residential Lots created over the Subject Land or earlier by agreement with Council, the Agreement ends in respect of that part of the Subject Land in the plan of subdivision in accordance with section 177 of the Act provided that at all times, the Agreement must remain registered on the balance of the Subject Land.

14.3 If notice of a proposal to end this Agreement is required pursuant to section 178C of the Act, the parties agree that only Council, the Owner and any Mortgagee of the Subject Land or that part of the Subject Land that is the subject of the proposal to end this Agreement are required to be notified of the proposal.

14.4 Once this Agreement ends as to part of the Subject Land, Council will, within a reasonable time following a request from the Owner and at the cost of the Owner, execute all documents necessary to make application to the Registrar of Titles under section 183(2) of the Act to cancel the recording of this Agreement on the register as to that part of the Subject Land.

14.5 On completion of all the Owner's obligations under this Agreement, Council must as soon as practicable following the ending of this Agreement and at the Owner's request and at the Owner's cost, execute all documents necessary to make application to the Registrar of Titles under section 183(2) of the Act to cancel the recording of this Agreement on the register.

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 15 of 21

Schedule 1

Ballan Road Precinct Structure Plan

AR127990F
14/06/2016 $94.60 173

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 16 of 21

Schedule 2

Open Space Land

Project No.	Description of Open Space Land*	Provision Trigger	Authority the Open Space Land is to be transferred to or vested in.	Services to be available (Av) or connected (Cn).	Open Space Contribution that the Owner is required to make under clause 52.01 of the Planning Scheme (in hectares)	Actual Open Space Provision	Open Space Land Value or methodology to be used for determining the Open Space Land Value
Local Parks P6, P7 and P8: Plan 5 – Open Space and Community Facilities and Table 4 Open Space Delivery Guide of the Ballan Road PSP.	Three local parks, in accordance with the Endorsed Plan, totalling 6000 square metres.	To be provided by the issue of a Statement of Compliance in the stage within which the area of open space is shown in the Endorsed Plan.	Council	All services Power Gas Water Drainage Telecommunications Sewer	3.00% of the NDA	0.6 hectare (6000 sq metres) or 5.18% of the Net Developable Area	$402,000 (0.6ha x $670,000) This is a 1 July 2016 $ figure subject to revaluation on an annual basis up to the date the land is transferred to or vested in Council. The methodology for determining the Open Space Value is the application of the relevant 1 July revaluation amount calculated by Council as part of its annual DCP and 52.01 land revaluations for Property 17 at the date the land is transferred to or vested in Council.

AR127990F
14/06/2018
$94.60
173

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 17 of 21

Total					**0.347 hectares**		
Over provision (in hectares)	**0.253 hectares to be provided as cash to the Owner in accordance with this Agreement.**	**Clause 4.4.2 of this Agreement provides for the timing of the payment to the Owner.**	N/A	N/A	0.253hectares	0.6 hectares	**$169,510** **(0.253ha x $670,000)** **This is a 1 July 2016 $ figure subject to revaluation on an annual basis up to the date the over provision cash payment is made to the Owner or used to offset any under provision 52.01 cash payments required to be paid to Council for nearby land.** **The methodology for determining the Open Space Value is the application of the relevant 1 July revaluation amount calculated by Council as part of its annual DCP and 52.01 land**

Total					0.347 hectares		
Over provision (in hectares)	0.253 hectares to be provided as cash to the Owner in accordance with this Agreement.	Clause 4.4.2 of this Agreement provides for the timing of the payment to the Owner.	N/A	N/A	0.253hectares	0.6 hectares	$169,510 (0.253ha x $670,000) This is a 1 July 2018 $ figure subject to revaluation on an annual basis up to the date the over provision cash payment is made to the Owner or used to offset any under provision 52.01 cash payments required to be paid to Council for nearby land. The methodology for determining the Open Space Value is the application of the relevant 1 July revaluation amount calculated by Council as part of its annual DCP and 52.01 land revaluations for Property 89-NW-58-E in the Tarneit North PSP at the date the land is transferred to or vested in Council. 0.253 x 'A' = Open Space Value. Where 'A' is the relevant 52.01 land revaluation provided to Council for Property ## in the relevant Precinct Structure Plan as at the 1 July each year.

* If necessary, the Open Space Land can be described by reference to a plan of subdivision or a survey plan or some other accurate drawing or plan relating to the Open Space Land.
The figures in the columns and rows identified are subject to change as part of the subdivision process. The areas in the subdivisions ultimately certified and subject to statements of compliance will form the basis of calculations and obligations relating to open space contributions under Clause 52.01 of the Planning Scheme.

AR127990F
14/06/2018 $94.60 173

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 17 of 21

Schedule 3

Land Specified for the purposes of clause 11.1

Project No.	Land Description	Plan Reference		
-	-	-		

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 18 of 21

AR127990F
14/06/2018 $91.60 173

Delivered by LANDATA®, timestamp 22/04/2026 14:15 Page 19 of 21

AR127990F
14/06/2018 $94.60 173

Schedule 4

- **Subject Land – 63 Wollahra Rise, Wyndham Vale being the land contained and described in Certificate of Title Volume 9464 Folio 465**

- **Planning Permit No. WYP 7729/14.03**

Maddocks

Signing Page

Signed, sealed and delivered as a deed by the Parties.

AR127990F
14/06/2018 $94.60 173

EXECUTED as an agreement.
Signed for and on behalf of the **Wyndham City Council** pursuant to Instrument of Delegation dated ~~24 June 2013~~ 12 September 2017

.....

Date 5 / 6 / 18

Executed by **Baycrown Pty Ltd ACN 062 665 883** in accordance with s 127(1) of the *Corporations Act 2001*:

.....

THOMAS VAN ASPEREN

Signature of Sole Director and Sole Company Secretary

Print full name

Maddocks

Mortgagee's Consent

Australia and New Zealand Banking Group Limited as Mortgagee under instrument of mortgage no. AM268530W consents to the Owner entering into this Agreement and in the event that the Mortgagee becomes mortgagee-in-possession, agrees to be bound by the covenants and conditions of this Agreement.

Australia and New Zealand Banking Group Limited
A.C.N. 005 357 522 by its authority under
Power of Attorney no. 706211119
Manager

.....
Mortgagee

Tanya Wright

AR127990F
14/06/2018 $94.60 173

vicroads

**** Delivered by the LANDATA® System, Department of Transport and Planning ****

ROADS PROPERTY CERTIFICATE

The search results are as follows:

ProSettle Group Pty Ltd t/a ProSettle Conveyancing C/- Triconvey2 (Reseller)
135 King Street
SYDNEY 2000
AUSTRALIA

Client Reference: 875419

NO PROPOSALS. As at the 22th April 2026, VicRoads has no approved proposals requiring any part of the property described in your application. You are advised to check your local Council planning scheme regarding land use zoning of the property and surrounding area.

This certificate was prepared solely on the basis of the Applicant-supplied address described below, and electronically delivered by LANDATA®.

9 FURNESS CLOSE, WYNDHAM VALE 3024
CITY OF WYNDHAM

This certificate is issued in respect of a property identified above. VicRoads expressly disclaim liability for any loss or damage incurred by any person as a result of the Applicant incorrectly identifying the property concerned.

Date of issue: 22th April 2026

[Vicroads Certificate] # 80319965 - 80319965141425 '875419'

wyndhamcity
city. coast. country

Your Ref: 875419

Our Ref: w2026C56000

23 April 2026

Landata
DX 250639
MELBOURNE VIC

Dear Sir/Madam,

BUILDING PERMIT HISTORY
PROPERTY: 9 Furness Close WYNDHAM VALE VIC 302

A search of Building Services records for the preceding 1

Permit No	Building Type	Permit D
6813199055719	Dwelling & Attached Garage.	18/

Determinations made under Regulation 64(1) or exemptio
Council has no records of any determinations or exemptions
Permits for these details.

Outstanding orders or notices
Our records show that there are no outstanding notices or ord
to be noted that we have not conducted an inspection of the p
does not preclude Council from taking action on any illegal buil

Make your own enquiries
The information supplied in this letter is based solely on current
enquiries beyond consulting these records. Consequently we rec
any specific details you may require.

Personal safety
In the interests of personal safety, we also remind you that:

- All residential properties with existing swimming pools or s
- If smoke alarms have not been installed in a residential pro
  owner within 30 days of property settlement.

Failure to comply with either of these requirements may result in s

wyndhamcity
city. coast. country

Civic Centre 45 Princes Highway, Werribee, Victoria 3030, Australia
Postal PO Box 197, Werribee, Victoria 3030, Australia

Telephone (03) 1300 023 411
Facsimile (03) 9741 6237
Email mail@wyndham.vic.gov.au
www.wyndham.vic.gov.au DX 30258 Werribee Vic
ABN: 38 393 903 860

Your Ref: 875419

Our Ref: w2026C56000

23 April 2026

Landata
DX 250639
MELBOURNE VIC

Dear Sir/Madam,

BUILDING PERMIT HISTORY
PROPERTY: 9 Furness Close WYNDHAM VALE VIC 3024

A search of Building Services records for the preceding 10 years has revealed the following building history.

Permit No	Building Type	Permit Date	Occupancy/Final No.	Occupancy/Final Date
6813199055719	Dwelling & Attached Garage.	18/09/2020	SFC 167801	20/04/2021

Determinations made under Regulation 64(1) or exemptions granted under regulation 231(2)
Council has no records of any determinations or exemptions granted. Check current Building or Occupancy Permits for these details.

Outstanding orders or notices
Our records show that there are no outstanding notices or orders under the Building Regulations. However, it is to be noted that we have not conducted an inspection of the property in regard to this enquiry and that this does not preclude Council from taking action on any illegal building works subsequently identified.

Make your own enquiries
The information supplied in this letter is based solely on current Building Services records. We have made no enquiries beyond consulting these records. Consequently we recommend that you make your own enquiries for any specific details you may require.

Personal safety
In the interests of personal safety, we also remind you that:

- All residential properties with existing swimming pools or spas must have compliant safety pool fencing
- If smoke alarms have not been installed in a residential property, they must be installed by the new owner within 30 days of property settlement.

Failure to comply with either of these requirements may result in significant fines and Court prosecution.

Disclaimer

We expressly disclaim any liability for loss, however occasioned from reliance upon the information herein.

If you have any questions about this letter, please contact Building Services on (03) 9742 0716 or email mail@wyndham.vic.gov.au.

Yours faithfully,



PHILIP WILSON
CO ORDINATOR BUILDING SERVICES

FORM 2

SFC Consulting Building Engineers
Suite 1/86 High Street,Berwick, VIC 3806
Phone: (03)9796 2755 • Fax: (03)9796 1884
Email: permits@sfcconsulting.com.au

Regulation 37(1)
Building Act 1993
Building Regulations 2018
BUILDING PERMIT
Building Permit No. BSU1082/6813199055719 18 September 2020
Whole - As shown on approved plans
Amendment 1 Amendment to Waffle slab reducing the amount of Bored Piers - **20 October 2020**

Issued to

Owner	**HYHB Unit Trust**	
ACN / ARBN	**6441154494**	
Postal Address	**348 Main Road West St Albans**	Postcode **3021**
Email	**sfcpakenham@bigpond.com**	
Address for serving or giving of documents:	**348 Main Road West St Albans**	Postcode **3021**
Contact Person	**Derek -**	Telephone **0431625138**

Property Details [include title details as and if applicable]

Number **9**	Street/Road **Furness Close**	Suburb **Wyndham Vale**	Postcode **3024**
Lot/s **114**	LP/PS **PS740173P**	Volume **12231**	Folio **225**
Crown allotment	Section No	Parish **Werribee**	County

Municipal District **Wyndham City Council**

Builder

Name	**Mustafa (Chris) Yorenc**	Telephone **9537 0016**
Company	**Symmetric Homes Pty Ltd**	
Address	**33 Wirraway Drive Port Melbourne 3207**	
ACN/ARBN:		

Building practitioner registration no: **DBU 30449**

This builder is specified under section 24B of the **Building Act 1993** for the building work to be carried out under this permit.

Details of Building Practitioners and Architects who were engaged to prepare documents forming part of the application for this permit

Name	Category/class	Registration Number
Alex Sorgiovanni	EC	22626

Details of Domestic Building Work Insurance
The issuer or provider of the required insurance policy is: **VMIA**
Insurance policy number : **C539452**
Insurance policy date : **04/09/2020**

Details of Relevant Planning Permit
Planning Permit No: **N/A** Date of grant of Planning Permit: **N/A**

Nature of Building Work
Description: **Construction of Single Storey Dwelling & Attached Garage.**
Storeys contains: **1**
Type of construction: **Dwelling & Garage**
Version of BCA applicable to permit: **2019**
Cost of Building Work: **$260,000.00**
Total floor area of new building work in m^2: **210**

Revisions
1. Amendment 1 Amendment to Waffle slab reducing the amount of Bored Piers - 20 October 2020:

Building classification

Part of Building: **Whole Dwelling** BCA Classification: **1a(a)**

Part of Building: **Attached Garage** BCA Classification: **10a**

Protection Work

Protection work is not required in relation to the building work proposed in this permit.

Inspection Requirements

The mandatory inspection notification stages are:

1. Inspection for Occupancy permit
2. Inspection of footings
3. Inspection of framework

Occupation or User of Building: An occupancy permit is required prior to the occupation or use of this building.

If an occupancy permit is required, the permit is required for the of the building in relation to which the building work is carried out.

Commencement and Completion

This building work must commence by 18 September 2021

If the building work to which this building permit applies is not commenced by this date, this building permit will lapse unless an extension is applied for and granted by the relevant building surveyor before this date under regulation 59 of the Building Regulations 2018.

This building work must be completed by 18 September 2022

If the building work to which this building permit applies is not completed by this date this building permit will lapse, unless an extension is applied for and granted by the relevant building surveyor before this date under regulation 59 of the Building Regulations 2018.

Relevant Building Surveyor

Name: **Sam F Coco**
Address: **Suite. 1 No. 86 High Street Berwick Vic 3806**
Email**: permits@sfcconsulting.com.au**
Building practitioner registration no.: **BSU1082**
Municipal district: **Wyndham City Council**
Permit no.:**BSU1082/6813199055719** Date of issue of permit: **18 September 2020**

Signature:

INSURANCE HOUSE PTY LTD
Level 3, 100 Wellington Parade
East Melbourne VIC 3002
https://www.insurancehouse.com.au/business/warranty/builders-warranty-victoria

1300 305 834

Domestic Building Insurance

Certificate of Insurance

HYHB Unit Trust
348 Main Rd W
ST ALBANS
VIC 3021

Policy Number:
C539452

Policy Inception Date:
04/09/2020

Builder Account Number:
001185

A contract of insurance complying with the Ministerial Order for Domestic Building Insurance issued under Section 135 of the Building Act 1993 (Vic) (Domestic Building Insurance) has been issued by the insurer Victorian Managed Insurance Authority a Statutory Corporation established under the Victorian Managed Insurance Authority Act 1996 (Vic), in respect of the domestic building work described below.

Policy Schedule Details

Domestic Building Work:	**C01: New Single Dwelling Construction**
At the property:	**9 Furness Cl WYNDHAM VALE VIC 3024 Australia**
Carried out by the builder:	**SYMMETRIC HOMES PTY LTD**
Builder ACN:	**133114628**

! If the builder's name and/or its ABN/ACN listed above does not exactly match with the information on the domestic building contract, please contact the VMIA. If these details are incorrect, the domestic building work will not be covered.

For the building owner(s):	**HYHB Unit Trust**
Pursuant to a domestic building contract dated:	**05/06/2020**
For the contract price of:	**$ 260,000.00**
Type of Cover:	**Cover is only provided if SYMMETRIC HOMES PTY LTD has died, becomes insolvent or has disappeared or fails to comply with a Tribunal or Court Order ***
The maximum policy limit for claims made under this policy is:	**$300,000 all inclusive of costs and expenses ***
The maximum policy limit for non-completion claims made under this policy is:	**20% of the contract price limited to the maximum policy limit for all claims under the policy***

PLEASE CHECK
If the information on this certificate does not match what's on your domestic building contract, please contact the VMIA immediately on 1300 363 424 or email dbi@vmia.vic.gov.au

IMPORTANT
This certificate must be read in conjunction with the policy terms and conditions and kept in a safe place. These documents are very important and must be retained by you and any successive owners of the property for the duration of the period of cover.

* The cover and policy limits described in this certificate are only a summary of the cover and limits and must be read in conjunction with, and are subject to the terms, conditions, limitations and exclusions contained in the policy terms and conditions.

Issued by Victorian Managed Insurance Authority

Date Generated:04/09/2020
OFFICE USE ONLY: COI-0717-1

Victorian Managed Insurance Authority
ABN 39 682 497 841
PO Box 18409, Collins Street East Victoria 8003
P: 1300 363 424

vmia
Risk Management and Insurance

INSURANCE HOUSE PTY LTD
Level 3, 100 Wellington Parade
East Melbourne VIC 3002
https://www.insurancehouse.com.au/business/warranty/builders-warranty-victoria

1300 305 834

Period of Cover

Cover commences on the earlier of the date of the domestic building contract or date of building permit for the domestic building work and concludes:

- Two years from completion of the domestic building work or termination of the domestic building contract for non structural defects*
- Six years from completion of the domestic building work or termination of the domestic building contract for structural defects*

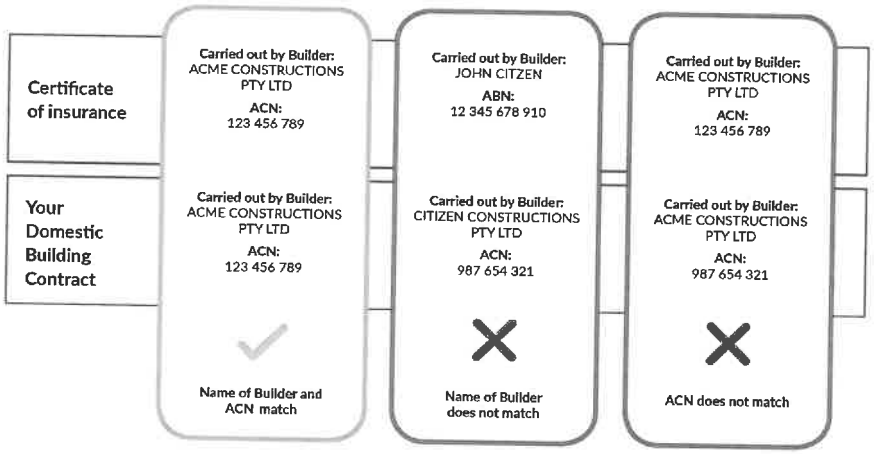
Subject to the Building Act 1993, and the Ministerial Order and the conditions of the insurance contract, cover will be provided to the building owner named in the domestic building contract and to the successors in title to the building owner in relation to the domestic building work undertaken by the Builder.

Issued by Victorian Management Insurance Authority (VMIA)

Domestic Building Insurance Premium and Statutory Costs

Base DBI Premium:	**$910.00**
GST:	**$91.00**
Stamp Duty:	**$100.10**
Total:	**$1,101.10**

If the information on the certificate does not match exactly what is on your domestic building contract, please contact VMIA on 1300 363 424
Below are some example of what to look for



Victorian Managed Insurance Authority
ABN 39 682 497 841
PO Box 18409, Collins Street East Victoria 8003
P: 1300 363 424

VICTORIA State Government

FORM 16

SFC Consulting Building Engineers
Suite 1/86 High Street, Berwick, VIC 3806
Phone: 03 9796 2755 • Fax: 03 9796 1884
Email: info@sfcconsulting.com.au

Regulation 192
Building Act 1993
Building Regulations 2018

OCCUPANCY PERMIT

Application Number: BLD20200285
Ref:SFC 167801

This occupancy permit must be displayed in the following approved location:

Property Details

Number: **9**	Street/Road: **Furness Close**	Suburb: **Wyndham Vale**	Postcode: **3024**
Lot/s: **114**	LP/PS: **PS740173P**	Volume: **12231**	Folio: **225**
Crown: allotment	Section: No	Parish: **Werribee**	County:

Municipal District: **Wyndham City Council**

Building permit details

Building permit number: **BSU1082/6813199055719**
Version of BCA applicable to building permit: **2019**

Building Details

Part of building to which permit applies: **Whole Dwelling**
BCA Class of building: **1a(a)**
Maximum number of people to be accommodated:
Permitted use: **Residential/Domestic**
Maximum permissible floor live load: **1.5**

Part of building to which permit applies: **Attached Garage**
BCA Class of building: **10a**
Maximum number of people to be accommodated:
Permitted use: **Domestic**
Maximum permissible floor live load:

Storeys contained: **1**
Effective height: **0**
Rise in storeys (for Class 2-9 buildings): **0**
Type of construction: **Dwelling & Garage**

Combined allotment determination

Subdivision of Existing Building Statement

Suitability for occupation

NOTES

In the case where this permit is issued in relation to building work it is evidence that the building or part of the building to which it applies is suitable for occupation. In the case where this permit is issued in relation to a place of public entertainment it is evidence that the place to which it applies is suitable for occupation for the purpose of the public entertainment for which it is issued. This occupancy permit is not evidence of compliance with the Building Act 1993 or the Building Regulations 2018.

For class 9 buildings the owner must ensure that this permit is displayed in the approved location.

Regulation 1208 (not applicable to Class 1a or 10 buildings) of the Building Regulations 2018 provides that an owner of a building who is required under an occupancy permit or regulation to maintain an essential service must-
(a) maintain records of maintenance checks; and
(b) complete an essential services report in accordance with regulation 1209 before each anniversary of the date of occupancy permit or determination under regulation 1207; and
(c) keep all essential service reports and records of maintenance checks on the premises for inspection by the municipal building surveyor or chief officer at any time on request. PENALTY: 10 penalty units

Relevant building surveyor

Name:	**Frank Samuel C**
Address:	**22 Main Street,**
Email:	**permits@sfcco**
Building practitioner registration no.:	**BSU1082**
Municipal district name:	**Wyndham City**
Occupancy Permit no.	**SFC 167801**
Date of issue:	20th April 2021
Signature:	

Relevant building surveyor

Name:	**Frank Samuel Coco**
Address:	**22 Main Street, Pakenham Vic 3810**
Email:	**permits@sfcconsulting.com.au**
Building practitioner registration no.:	**BSU1082**
Municipal district name:	**Wyndham City Council**
Occupancy Permit no.	**SFC 167801**
Date of issue:	20th April 2021
Signature:	

wyndhamcity
city. coast. country

Civic Centre | 45 Princes Highway, Werribee, Victoria 3030, Australia
Postal | PO Box 197, Werribee, Victoria 3030, Australia

Telephone | 1300 023 411
Email | mail@wyndham.vic.gov.au
www.wyndham.vic.gov.au ABN: 38 393 903 860

Your Ref: 875419

Our Ref: wLIC03882/26

Date: 23/04/2026

Landata
DX 250639
MELBOURNE VIC

LAND INFORMATION CERTIFICATE
Year Ending :30/06/2026
Assessment No: 236189
Certificate No: wLIC03882/26
All Enquiries and Updates to 1300 023 411

236189

Property Description: V 12231 F 225 L 114 PS 740173 Werribee Parish
AVPCC Code: 110 - Detached Home
Property Situated: 9 Furness Close
WYNDHAM VALE VIC 3024

Site Value	$285000	CIV	$510000	NAV	$25500

The level of valuation is 01/01/2025.
The Date Valuation was adopted for rating purposes is 01/07/2025.

Current Year's Rates		
General DL Rates		$1130.16
Municipal Charge		$70.32
Garbage Charge		$461.80
Fire Services Levy		$224.23
Current Rates Levied	$1886.51	
Less Payments		($1414.51)
Balance Outstanding		$472.00

TOTAL OUTSTANDING	**$472.00**

Council strongly recommends that an updated certificate be sought prior to any settlement of land or other reliance on this certificate. A written update will be provided free of charge for up to 3 months after the date of issue.

This certificate provides information regarding valuation, rates, charges, other moneys owing and any orders and notices made under the Local Government Act 1958, the Local Government Act 1989 or under a local law of the Council and the specified flood level by the Council (if any).

This Certificate is not required to include information regarding planning, building, health, land fill, land slip, flooding information or service easements. Information regarding these matters may be available from Council or the relevant authority. A fee may be charged for such information.

OTHER INFORMATION NOTICES AND ORDERS:

There is no potential Liability for Rates under the Cultural and Recreational Lands Act 1974.
There is no potential Liability for the Land to become Rateable under Section 173 or 174A of the Local Government Act 1989.
There is no Outstanding Amount to be paid for Recreational Purposes or any transfer of Land required to be made to Council for Recreational Purposes under the Local Government Act 1958.

LAND CLEARANCE CHARGES:

Directions to maintain vacant land to Council requirements all year round are in place under the Local Law.
Although there may be no charges shown on the Certificate, it is possible that a Charge OR a Notice to Comply to maintain the vacant land as required may exist by settlement date.
Please contact Council's City Resilience Department via email at mail@wyndham.vic.gov.au to check if there are any pending Charges that are not listed but which may transfer with the property to the new owner.

NOTE: Whilst all efforts have been made to ensure that the information contained in this Certificate is accurate and reflects the current records of the City as at the date of the Certificates issue, information contained in the Certificate is subject to regular update and it is strongly recommended that an updated Certificate be sought immediately prior to any settlement of land or other reliance on this Certificate.

I hereby certify that as at the Date of Issue the information given in this Certificate is a true and correct disclosure of Rates and other Monies payable to the Wyndham City Council, together with any Notice or Orders referred to in this Certificate

APPLICANT:Landata

REFERENCE:wLIC03882/26

RECEIVED THE SUM OF $30.60 BEING FOR THE FEE FOR THE CERTIFICATE

Abhinav Mehra/Coordinator Finance Operations

Payment Options

BPAY (Rates payments only)
Biller Code: 76869
Customer Reference Number: 2334962

Online via Credit Card
Visit www.wyndham.vic.gov.au
Rates Payment
Bank Reference Number: 2334962

Land Clearance Charge (if applicable)
See Reference Number above

Cheque Payment
Send cheque made payable to Wyndham City Council and **a copy of this LIC** to PO Box 197, Werribee, VIC 3030

Greater Western Water

LANDATA COUNTER SERVICES
LEVEL 13 697 COLLINS ST
DOCKLANDS VIC 3008

Information Statement Certificate

Reference number
80319965-021-2

Statement number
6504044935

Date of Issue 22 Apr 2026

Total amount
$194.31

Total amount to end of June 2026 and includes any unbilled amount

Please see page 2 for detailed information

Water Act, 1989, Section 158

This Statement details all tariffs, charges and penalties due and payable to Greater Western Water, as at the date of this Statement, and also includes tariffs and charges, (other than for water yet to be consumed), which are due and payable to the 30 June 2026 as well as any relevant orders, notices and encumbrances applicable to the property, described hereunder.

Property address 9 FURNESS CLOSE, WYNDHAM VALE VIC 3024

Property number 8068330000

Lot on Plan 114\PS740173

Comments

Payment options

Greater Western Water ABN 70 066 902 467

BPAY

BPAY
Biller code: **8789**
Ref: **60272700002**
Go to **bpay.com.au**
®Registered to BPAY Pvt Ltd
ABN 69 079 137 518

Post Billpay

Australia Post
Billpay code: **0362**
Ref: **0602 7270 0006**

Pay at any post office, by phone **13 18 16**, at **postbillpay.com.au**, or via Auspost app

*362 060272700006

Annual Charges

Service charges

	Annual charge FY 2025 - 26	Frequency	Year to date billed amount	Outstanding amount
Residential Water Service Charge	$224.24	Quarterly	$168.33	$0.00
Residential Sewer Service Charge	$297.98	Quarterly	$223.69	$0.00
Residential Recycled Water Service Charge	$42.26	Quarterly	$31.72	$0.00
Parks	$89.79	Quarterly	$67.40	$0.00
Waterways and Drainage	$125.00	Quarterly	$93.82	$0.00
Total annual charges	**$779.27**		**$584.96**	**$0.00**

Other charges and adjustments

Service charges owing for previous financial years	$0.00
Volumetric charges owing to 12/07/2021	$0.00
Adjustments	$0.00
Total charges and adjustment	$0.00

Outstanding charges

Current balance	$0.00
Plus remainder service charges to be billed	$194.31
Total charges	**$194.31**

Volumetric Charges

Please note the water meter on this property was last read on 12/07/2021. The information supplied below could be used to calculate the estimated volumetric charges from last meter read date 12/07/2021 to the settlement date. Based on the water consumption from the last bill for this property, the average daily cost of volumetric charges is as follows: Usage $0.00 per day

Disclaimer
Greater Western Water hereby certify that the information detailed in this statement is true and correct according to records held and that the prescribed fee has been received. However, Greater Western Water does not guarantee or make any representation or warranty as to the accuracy of this plan or associated details. It is provided in good faith as the best information available at the time. Greater Western Water therefore accepts no liability for any loss or injury suffered by any party as a result of any inaccuracy on this plan. The cadastral data included on this map originates from VICMAP Data and is licenced for re-use under Creative Commons License. Please refer to https://www.propertyandlandtitles.vic.gov.au/ for any queries arising from information provided herein or contact Greater Western Water 13 44 99. This statement is valid for a period of 90 days from date of issue.

Please note that the property is in an area designated by Greater Western Water for the provision of a recycled water supply in addition to drinking water and sewerage services. The conditions of connection for recycled water are available on our web site at www.gww.com.au. Should you require further information, please contact Greater Western Water on 13 44 99 or by emailing to contact@gww.com.au.

Portion of the land could be subject to inundation at times of high storm flow. Therefore any proposed development on the property is to be referred to Melbourne Water, Land Development Team (Postal Address: GPO Box 4342, Melbourne 3001) - Telephone: 131722.

Where applicable, this statement gives particulars of Greater Western Water service charges as well as Parks Service and Waterways & Drainage service charges. Parks Service and Waterways & Drainage service charges are levied and collected on behalf of Parks Victoria and Melbourne Water Corporation respectively.

Section 274(4A) of the Water Act 1989 provides that all amounts in relation to this property that are owed by the owner are a charge on this property.

Section 275 of the Water Act 1989 provides that a person who becomes the owner of a property must pay to the Authority at the time the person becomes the owner of the property any amount that is, under Section 274(4A), a charge on the property.

General Information

If a special meter reading is required for settlement purposes please contact Greater Western Water on 13 44 99 at least 7 business days prior to the settlement date. Please note that results of the special meter reading may not be available for at least two business days after the meter is read. An account for charges from the previous meter read date to the special meter read date will be forwarded to the vendor of the property. Please visit Greater Western Water's website prior to settlement for an update on these charges and remit payments to Greater Western Water immediately following settlement-gww.com.au/information-statements. Updates of rates and other charges will only be provided for up to a period of 90 days from the date of issue.

Authorised Officer,

Terence Alvares

Terence Alvares

General Manager, Customer Experience

INFORMATION STATEMENT PLOT

Address : **9 FURNESS CLOSE WYNDHAM VALE 3024**

Reference : **PID000338608**



Scale 1:1000

Printed on : 22/04/2026

Water Main DOES NOT traverse property

Sewer Main DOES NOT traverse property

- Water Potable
- Water Recycled
- Sewer Main
- Abandoned Main
- Maintenance Shaft
- Inspection Shaft
- Node / Valve
- Hydrant

N

Greater Western Water

Greater Western Water
36 Macedon St,
Sunbury
Locked Bag 350
Sunshine
VIC 3020

Ph: 134 499

www.gww.com.au

Disclaimer : The location of assets must be proved in the field prior to the commencement of work. A separate plan showing asset labels should be obtained for any proposed works. These plans do not indicate private services. Greater Western Water Corporation does not guarantee and makes no representation or warranty as to the accuracy or scale of this plan. This corporation accepts no liability for any loss, damage or injury by any person as a result of any inaccuracy in this plan.

Property Clearance Certificate

Land Tax

STATE REVENUE OFFICE VICTORIA

INFOTRACK / PROSETTLE GROUP PTY LTD T/A
PROSETTLE CONVEYANCING

Your Reference:	190983
Certificate No:	98810394
Issue Date:	22 APR 2026
Enquiries:	ESYSPROD

Land Address: 9 FURNESS CLOSE WYNDHAM VALE VIC 3024

Land Id	Lot	Plan	Volume	Folio	Tax Payable
47613309	114	740173	12231	225	$975.00

Vendor: HYHB PTY LTD

Purchaser: FOR INFORMATION PURPOSES

Current Land Tax	Year	Taxable Value (SV)	Proportional Tax	Penalty/Interest	Total
HYHB PTY LTD	2026	$285,000	$975.00	$0.00	$975.00

Comments: Land Tax will be payable but is not yet due - please see notes on reverse.

Current Vacant Residential Land Tax	Year	Taxable Value (CIV)	Tax Liability	Penalty/Interest	Total

Comments:

Arrears of Land Tax	Year	Proportional Tax	Penalty/Interest	Total

Arrears of Vacant Residential Land Tax	Year	Proportional Tax	Penalty/Interest	Total

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.

Paul Broderick
Commissioner of State Revenue

CAPITAL IMPROVED VALUE (CIV):	$510,000
SITE VALUE (SV):	$285,000
CURRENT LAND TAX AND VACANT RESIDENTIAL LAND TAX CHARGE:	**$975.00**

Notes to Certificate - Land Tax

Certificate No: 98810394

Power to issue Certificate

1. Pursuant to section 95AA of the *Taxation Administration Act 1997*, the Commissioner of State Revenue must issue a Property Clearance Certificate (Certificate) to an owner, mortgagee or bona fide purchaser of land who makes an application specifying the land for which the Certificate is sought and pays the application fee.

Amount shown on Certificate

2. The Certificate shows any land tax (including Vacant Residential Land Tax, interest and penalty tax) that is due and unpaid on the land described in the Certificate at the date of issue. In addition, it may show:
   - Land tax that has been assessed but is not yet due,
   - Land tax for the current tax year that has not yet been assessed, and
   - Any other information that the Commissioner sees fit to include, such as the amount of land tax applicable to the land on a single holding basis and other debts with respect to the property payable to the Commissioner.

Land tax is a first charge on land

3. Unpaid land tax (including Vacant Residential Land Tax, interest and penalty tax) is a first charge on the land to which it relates. This means it has priority over any other encumbrances on the land, such as a mortgage, and will continue as a charge even if ownership of the land is transferred. Therefore, a purchaser may become liable for any such unpaid land tax.

Information for the purchaser

4. Pursuant to section 96 of the *Land Tax Act 2005*, if a purchaser of the land described in the Certificate has applied for and obtained a certificate, the amount recoverable from the purchaser by the Commissioner cannot exceed the amount set out in the certificate, described as the "Current Land Tax Charge and Vacant Residential Land Tax Charge" overleaf. A purchaser cannot rely on a Certificate obtained by the vendor.

Information for the vendor

5. Despite the issue of a Certificate, the Commissioner may recover a land tax liability from a vendor, including any amount identified on this Certificate.

Apportioning or passing on land tax to a purchaser

6. A vendor is prohibited from apportioning or passing on land tax including vacant residential land tax, interest and penalty tax to a purchaser under a contract of sale of land entered into on or after 1 January 2024, where the purchase price is less than $10 million (to be indexed annually from 1 January 2025, as set out on the website for Consumer Affairs Victoria).

General information

7. A Certificate showing no liability for the land does not mean that the land is exempt from land tax. It means that there is nothing to pay at the date of the Certificate.

8. An updated Certificate may be requested free of charge via our website, if:
   - The request is within 90 days of the original Certificate's issue date, and
   - There is no change to the parties involved in the transaction for which the Certificate was originally requested.

For Information Only

LAND TAX CALCULATION BASED ON SINGLE OWNERSHIP

Land Tax = $975.00

Taxable Value = $285,000

Calculated as $975 plus ($285,000 - $100,000) multiplied by 0.000 cents.

VACANT RESIDENTIAL LAND TAX CALCULATION

Vacant Residential Land Tax = $5,100.00

Taxable Value = $510,000

Calculated as $510,000 multiplied by 1.000%.

Land Tax - Payment Options

BPAY

Biller Code:5249
Ref: 98810394

Telephone & Internet Banking - BPAY®

Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account.

www.bpay.com.au

CARD

Ref: 98810394

Visa or Mastercard

Pay via our website or phone 13 21 61. A card payment fee applies.

sro.vic.gov.au/paylandtax

Property Clearance Certificate updates are available at **sro.vic.gov.au/certificates**

Property Clearance Certificate

Commercial and Industrial Property Tax

STATE REVENUE OFFICE VICTORIA

INFOTRACK / PROSETTLE GROUP PTY LTD T/A PROSETTLE CONVEYANCI

Your Reference:	190983
Certificate No:	98810394
Issue Date:	22 APR 2026
Enquires:	ESYSPROD

Land Address: 9 FURNESS CLOSE WYNDHAM VALE VIC 3024

Land Id	Lot	Plan	Volume	Folio	Tax Payable
47613309	114	740173	12231	225	$0.00

AVPCC	Date of entry into reform	Entry interest	Date land becomes CIPT taxable land	Comment
110	N/A	N/A	N/A	The AVPCC allocated to the land is not a qualifying use.

This certificate is subject to the notes found on the reverse of this page. The applicant should read these notes carefully.

Paul Broderick
Commissioner of State Revenue

CAPITAL IMPROVED VALUE:	$510,000
SITE VALUE:	$285,000
CURRENT CIPT CHARGE:	**$0.00**

Notes to Certificate - Commercial and Industrial Property Tax

Certificate No: 98810394

Power to issue Certificate

1. Pursuant to section 95AA of the *Taxation Administration Act 1997*, the Commissioner of State Revenue must issue a Property Clearance Certificate (Certificate) to an owner, mortgagee or bona fide purchaser of land who makes an application specifying the land for which the Certificate is sought and pays the application fee.

Amount shown on Certificate

2. The Certificate shows any commercial and industrial property tax (including interest and penalty tax) that is due and unpaid on the land described in the Certificate at the date of issue.

Australian Valuation Property Classification Code (AVPCC)

3. The Certificate may show one or more AVPCC in respect of land described in the Certificate. The AVPCC shown on the Certificate is the AVPCC allocated to the land in the most recent of the following valuation(s) of the land under the *Valuation of Land Act 1960:*
   - a general valuation of the land;
   - a supplementary valuation of the land returned after the general valuation.
4. The AVPCC(s) shown in respect of land described on the Certificate can be relevant to determine if the land has a qualifying use, within the meaning given by section 4 of the *Commercial and Industrial Property Tax Reform Act 2024* (CIPT Act). Section 4 of the CIPT Act Land provides that land will have a qualifying use if:
   - the land has been allocated one, or more than one, AVPCC in the latest valuation, all of which are in the range 200-499 and/or 600-699 in the Valuation Best Practice Specifications Guidelines (the requisite range);
   - the land has been allocated more than one AVPCC in the latest valuation, one or more of which are inside the requisite range and one or more of which are outside the requisite range, and the land is used solely or primarily for a use described in an AVPCC in the requisite range; or
   - the land is used solely or primarily as eligible student accommodation, within the meaning of section 3 of the CIPT Act.

Commercial and industrial property tax information

5. If the Commissioner has identified that land described in the Certificate is tax reform scheme land within the meaning given by section 3 of the CIPT Act, the Certificate may show in respect of the land:
   - the date on which the land became tax reform scheme land;
   - whether the entry interest (within the meaning given by section 3 of the Duties Act 2000) in relation to the tax reform scheme land was a 100% interest (a whole interest) or an interest of less than 100% (a partial interest); and
   - the date on which the land will become subject to the commercial and industrial property tax.
6. A Certificate that does not show any of the above information in respect of land described in the Certificate does not mean that the land is not tax reform scheme land. It means that the Commissioner has not identified that the land is tax reform scheme land at the date of issue of the Certificate. The Commissioner may identify that the land is tax reform scheme land after the date of issue of the Certificate.

Change of use of tax reform scheme land

7. Pursuant to section 34 of the CIPT Act, an owner of tax reform scheme land must notify the Commissioner of certain changes of use of tax reform scheme land (or part of the land) including if the actual use of the land changes to a use not described in any AVPCC in the range 200-499 and/or 600-699. The notification must be given to the Commissioner within 30 days of the change of use.

Commercial and industrial property tax is a first charge on land

8. Commercial and industrial property tax (including any interest and penalty tax) is a first charge on the land to which the commercial and industrial property tax is payable. This means it has priority over any other encumbrances on the land, such as a mortgage, and will continue as a charge even if ownership of the land is transferred. Therefore, a purchaser may become liable for any unpaid commercial and industrial property tax.

Information for the purchaser

9. Pursuant to section 27 of the CIPT Act, if a bona fide purchaser for value of the land described in the Certificate applies for and obtains a Certificate in respect of the land, the maximum amount recoverable from the purchaser is the amount set out in the Certificate. A purchaser cannot rely on a Certificate obtained by the vendor.

Information for the vendor

10. Despite the issue of a Certificate, the Commissioner may recover a commercial and industrial property tax liability from a vendor, including any amount identified on this Certificate.

Passing on commercial and industrial property tax to a purchaser

11. A vendor is prohibited from apportioning or passing on commercial and industrial property tax to a purchaser under a contract of sale of land entered into on or after 1 July 2024 where the purchase price is less than $10 million (to be indexed annually from 1 January 2025, as set out on the website for Consumer Affairs Victoria).

General information

12. Land enters the tax reform scheme if there is an entry transaction, entry consolidation or entry subdivision in respect of the land (within the meaning given to those terms in the CIPT Act). Land generally enters the reform on the date on which an entry transaction occurs in respect of the land (or the first date on which land from which the subject land was derived (by consolidation or subdivision) entered the reform).
13. The Duties Act includes exemptions from duty, in certain circumstances, for an eligible transaction (such as a transfer) of tax reform scheme land that has a qualifying use on the date of the transaction. The exemptions apply differently based on whether the entry interest in relation to the land was a whole interest or a partial interest. For more information, please refer to www.sro.vic.gov.au/CIPT.
14. A Certificate showing no liability for the land does not mean that the land is exempt from commercial and industrial property tax. It means that there is nothing to pay at the date of the Certificate.
15. An updated Certificate may be requested free of charge via our website, if:
   - the request is within 90 days of the original Certificate's issue date, and
   - there is no change to the parties involved in the transaction for which the Certificate was originally requested.

Property Clearance Certificate

Windfall Gains Tax

INFOTRACK / PROSETTLE GROUP PTY LTD T/A PROSET

Land Address:	9 FURNESS CLOSE WYNDHAM VALE VIC 3024		
Lot	**Plan**	**Volume**	
114	740173	12231	
Vendor:	HYHB PTY LTD		
Purchaser:	FOR INFORMATION PURPOSES		
WGT Property Id	**Event ID**	**Windfall Gains Tax**	**Defe**
		$0.00	
Comments:	No windfall gains tax liability identified.		

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.

Paul Broderick
Commissioner of State Revenue

Property Clearance Certificate

Windfall Gains Tax

INFOTRACK / PROSETTLE GROUP PTY LTD T/A PROSETTLE CONVEYANCING

Your Reference:	190983
Certificate No:	98810394
Issue Date:	22 APR 2026

Land Address:	9 FURNESS CLOSE WYNDHAM VALE VIC 3024

Lot	Plan	Volume	Folio
114	740173	12231	225

Vendor: HYHB PTY LTD

Purchaser: FOR INFORMATION PURPOSES

WGT Property Id	Event ID	Windfall Gains Tax	Deferred Interest	Penalty/Interest	Total
		$0.00	$0.00	$0.00	$0.00

Comments: No windfall gains tax liability identified.

This certificate is subject to the notes that appear on the reverse. The applicant should read these notes carefully.

CURRENT WINDFALL GAINS TAX CHARGE:
$0.00

Paul Broderick
Commissioner of State Revenue

Notes to Certificate - Windfall Gains Tax

Certificate No: 98810394

Power to issue Certificate

1. Pursuant to section 95AA of the *Taxation Administration Act 1997*, the Commissioner of State Revenue must issue a Property Clearance Certificate (Certificate) to an owner, mortgagee or bona fide purchaser of land who makes an application specifying the land for which the Certificate is sought and pays the application fee.

Amount shown on Certificate

2. The Certificate shows in respect of the land described in the Certificate:
   - Windfall gains tax that is due and unpaid, including any penalty tax and interest
   - Windfall gains tax that is deferred, including any accrued deferral interest
   - Windfall gains tax that has been assessed but is not yet due
   - Windfall gains tax that has not yet been assessed (i.e. a WGT event has occurred that rezones the land but any windfall gains tax on the land is yet to be assessed)
   - Any other information that the Commissioner sees fit to include such as the amount of interest accruing per day in relation to any deferred windfall gains tax.

Windfall gains tax is a first charge on land

3. Pursuant to section 42 of the *Windfall Gains Tax Act 2021*, windfall gains tax, including any accrued interest on a deferral, is a first charge on the land to which it relates. This means it has priority over any other encumbrances on the land, such as a mortgage, and will continue as a charge even if ownership of the land is transferred. Therefore, a purchaser may become liable for any unpaid windfall gains tax.

Information for the purchaser

4. Pursuant to section 42 of the *Windfall Gains Tax Act 2021*, if a bona fide purchaser for value of land applies for and obtains a Certificate in respect of the land, the maximum amount recoverable from the purchaser by the Commissioner is the amount set out in the certificate, described as the "Current Windfall Gains Tax Charge" overleaf.
5. If the certificate states that a windfall gains tax is yet to be assessed, note 4 does not apply.
6. A purchaser cannot rely on a Certificate obtained by the vendor.

Information for the vendor

7. Despite the issue of a Certificate, the Commissioner may recover a windfall gains tax liability from a vendor, including any amount identified on this Certificate.

Passing on windfall gains tax to a purchaser

8. A vendor is prohibited from passing on a windfall gains tax liability to a purchaser where the liability has been assessed under a notice of assessment as at the date of the contract of sale of land or option agreement. This prohibition does not apply to a contract of sale entered into before 1 January 2024, or a contract of sale of land entered into on or after 1 January 2024 pursuant to the exercise of an option granted before 1 January 2024.

General information

9. A Certificate showing no liability for the land does not mean that the land is exempt from windfall gains tax. It means that there is nothing to pay at the date of the Certificate.
10. An updated Certificate may be requested free of charge via our website, if:
    - The request is within 90 days of the original Certificate's issue date, and
    - There is no change to the parties involved in the transaction for which the Certificate was originally requested.
11. Where a windfall gains tax liability has been deferred, interest accrues daily on the deferred liability. The deferred interest shown overleaf is the amount of interest accrued to the date of issue of the certificate.

Windfall Gains Tax - Payment Options

BPAY

Biller Code: 416073
Ref: 98810393

Telephone & Internet Banking - BPAY®

Contact your bank or financial institution to make this payment from your cheque, savings, debit or transaction account.

www.bpay.com.au

CARD

Ref: 98810393

Visa or Mastercard

Pay via our website or phone 13 21 61. A card payment fee applies.

sro.vic.gov.au/payment-options

Important payment information

Windfall gains tax payments must be made using only these specific payment references.

Using the incorrect references for the different tax components listed on this property clearance certificate will result in misallocated payments.

Property Clearance Certificate updates are available at **sro.vic.gov.au/certificates**

PROPERTY REPORT

VICTORIA State Government | Energy, Environment and Climate Action

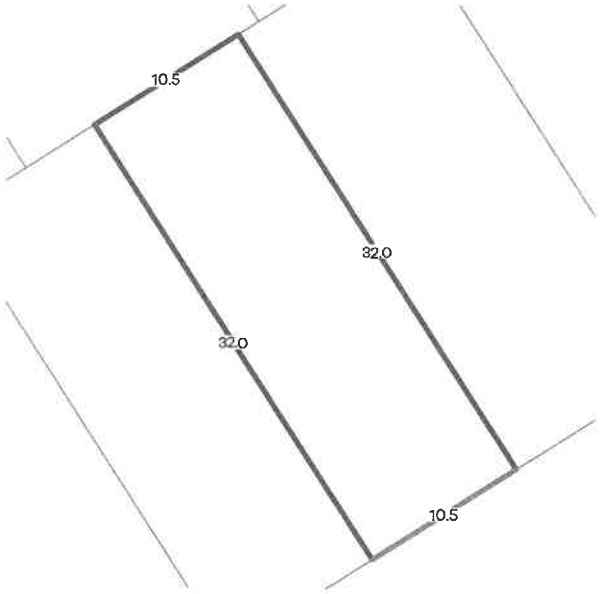
Created at 30 April 2026 01:28 AM

PROPERTY DETAILS

Address:	**9 FURNESS CLOSE WYNDHAM VALE 3024**
Lot and Plan Number:	**Lot 114 PS740173**
Standard Parcel Identifier (SPI):	**114\PS740173**
Local Government Area (Council):	**WYNDHAM** www.wyndham.vic.gov.au
Council Property Number:	**236189**
Directory Reference:	**Melway 234 A12**

SITE DIMENSIONS

All dimensions and areas are approximate. They may not agree with those shown on a title or plan.



Area: 336 sq. m
Perimeter: 85 m
For this property:
—— Site boundaries
—— Road frontages

Dimensions for individual parcels require a separate search, but dimensions for individual units are generally not available.

Calculating the area from the dimensions shown may give a different value to the area shown above

For more accurate dimensions get copy of plan at Title and Property Certificates

UTILITIES

Rural Water Corporation:	**Southern Rural Water**
Melbourne Water Retailer:	**Greater Western Water**
Melbourne Water:	**Inside drainage boundary**
Power Distributor:	**POWERCOR**

STATE ELECTORATES

Legislative Council:	**WESTERN METROPOLITAN**
Legislative Assembly:	**WERRIBEE**

PLANNING INFORMATION

Property Planning details have been removed from the Property Reports to avoid duplication with the Planning Property Reports from the Department of Transport and Planning which are the authoritative source for all Property Planning information.

The Planning Property Report for this property can found here - Planning Property Report

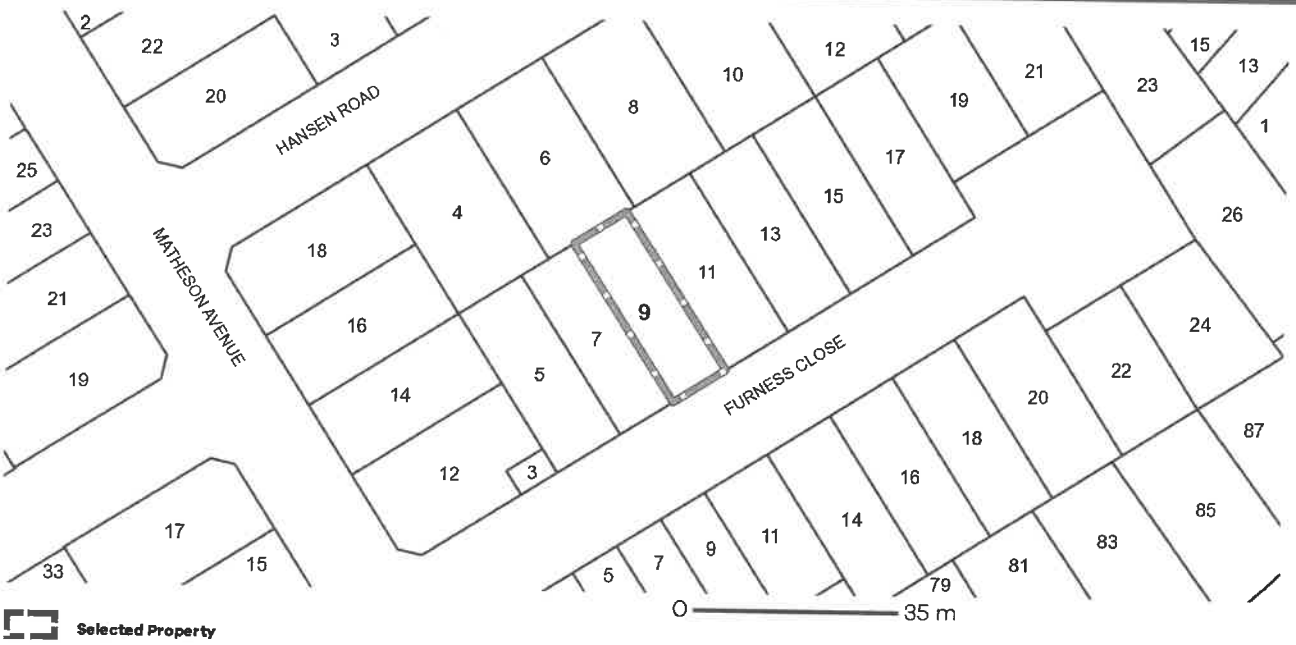
Planning Property Reports can be found via these two links
Vicplan https://mapshare.vic.gov.au/vicplan/
Property and parcel search https://www.land.vic.gov.au/property-and-parcel-search

Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.deeca.vic.gov.au/disclaimer

PROPERTY REPORT

VICTORIA State Government | Energy, Environment and Climate Action

Area Map



Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.deeca.vic.gov.au/disclaimer

PLANNING PROPERTY REPORT

From www.planning.vic.gov.au at 30 April 2026 01:28 AM

PROPERTY DETAILS

Address:	**9 FURNESS CLOSE WYNDHAM VALE 3024**
Lot and Plan Number:	**Lot 114 PS740173**
Standard Parcel Identifier (SPI):	**114\PS740173**
Local Government Area (Council):	**WYNDHAM**
Council Property Number:	**236189**
Planning Scheme:	**Wyndham**
Directory Reference:	**Melway 234 A12**

www.wyndham.vic.gov.au

Planning Scheme - Wyndham

UTILITIES

Rural Water Corporation:	**Southern Rural Water**
Melbourne Water Retailer:	**Greater Western Water**
Melbourne Water:	**Inside drainage boundary**
Power Distributor:	**POWERCOR**

STATE ELECTORATES

Legislative Council:	**WESTERN METROPOLITAN**
Legislative Assembly:	**WERRIBEE**

OTHER

Registered Aboriginal Party:	**Wadawurrung Traditional Owners Aboriginal Corporation**
Fire Authority:	**Country Fire Authority**

View location in VicPlan

Note

This land is in an area added to the Urban Growth Boundary after 2005. It may be subject to the Growth Area Infrastructure Contribution.

For more information about this project go to Victorian Planning Authority

Planning Zones

URBAN GROWTH ZONE (UGZ)

URBAN GROWTH ZONE - SCHEDULE 8 (UGZ8)



UGZ - Urban Growth

Note: labels for zones may appear outside the actual zone - please compare the labels with the legend.

Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.vic.gov.au/disclaimer

Notwithstanding this disclaimer, a vendor may rely on the information in this report for the purpose of a statement that land is in a bushfire prone area as required by section 32C (b) of the Sale of Land 1962 (Vic).

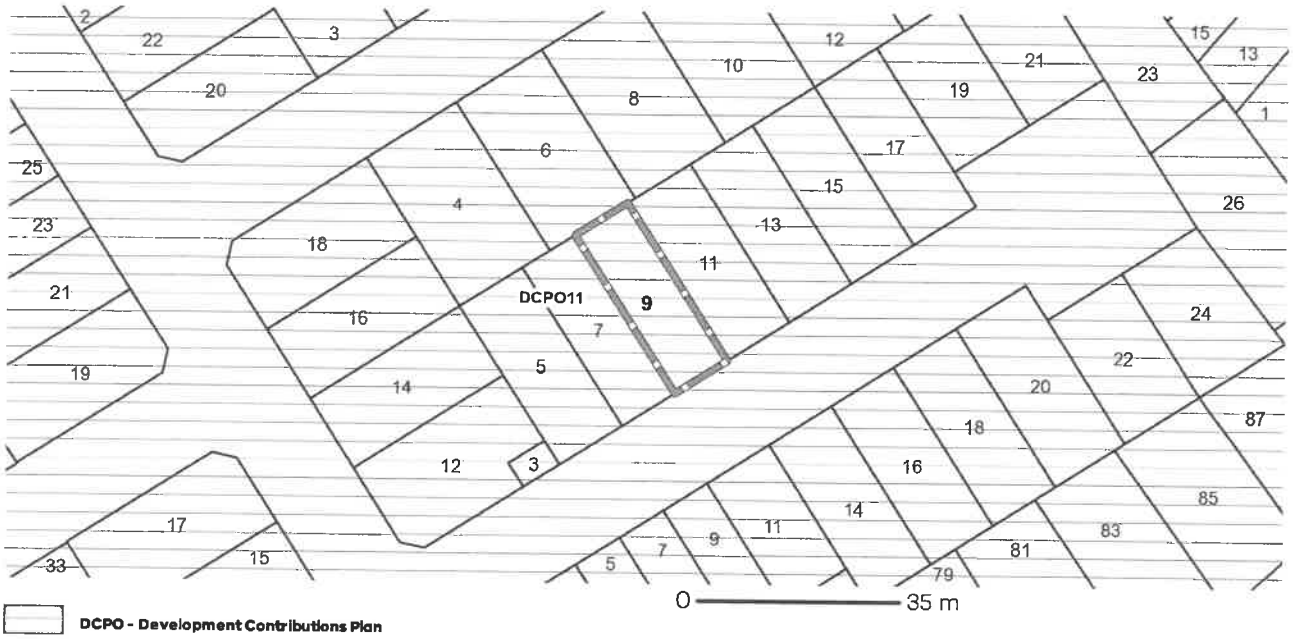
PLANNING PROPERTY REPORT

Department of Transport and Planning

Planning Overlay

DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY (DCPO)

DEVELOPMENT CONTRIBUTIONS PLAN OVERLAY - SCHEDULE 11 (DCPO11)

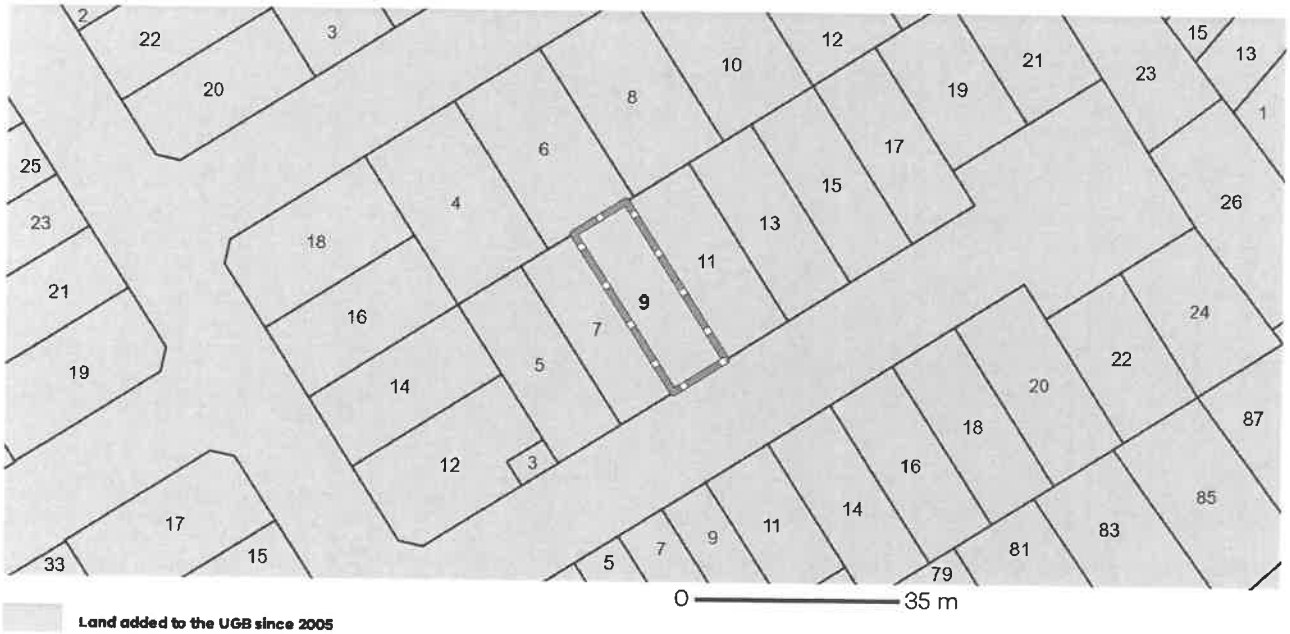


DCPO - Development Contributions Plan Overlay

Note: due to overlaps, some overlays may not be visible, and some colours may not match those in the legend

Growth Area Infrastructure Contribution

This property is in an area added to the Urban Growth Boundary after 2005.
It may be subject to the Growth Area Infrastructure Contribution.
For more information about this contribution go to Victorian Planning Authority



Land added to the UGB since 2005

Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.vic.gov.au/disclaimer

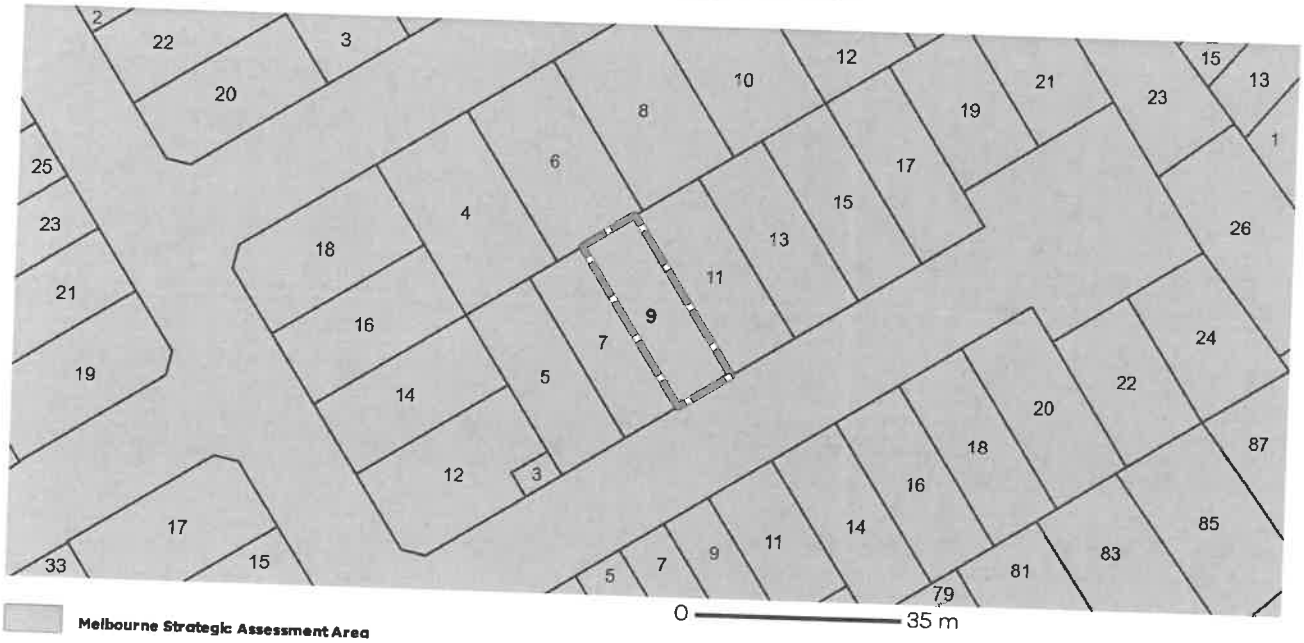
Notwithstanding this disclaimer, a vendor may rely on the information in this report for the purpose of a statement that land is in a bushfire prone area as required by section 32C (b) of the Sale of Land 1962 (Vic).

PLANNING PROPERTY REPORT

Department of Transport and Planning

Melbourne Strategic Assessment

This property is located within the Melbourne Strategic Assessment program area. Actions associated with urban development are subject to requirements of the Melbourne Strategic Assessment (Environment Mitigation Levy) Act 2020 and the Commonwealth Environment Protection and Biodiversity Conservation Act 1999. Follow the link for more details: https://mapshare.vic.gov.au/msa/



Further Planning Information

Planning scheme data last updated on 24 April 2026.

A **planning scheme** sets out policies and requirements for the use, development and protection of land. This report provides information about the zone and overlay provisions that apply to the selected land. Information about the State and local policy, particular, general and operational provisions of the local planning scheme that may affect the use of this land can be obtained by contacting the local council or by visiting https://www.planning.vic.gov.au

This report is NOT a **Planning Certificate** issued pursuant to Section 199 of the ***Planning and Environment Act 1987.*** It does not include information about exhibited planning scheme amendments, or zonings that may abut the land. To obtain a Planning Certificate go to Titles and Property Certificates at Landata - https://www.landata.vic.gov.au

For details of surrounding properties, use this service to get the Reports for properties of interest.

To view planning zones, overlay and heritage information in an interactive format visit https://mapshare.vic.gov.au/vicplan/

For other information about planning in Victoria visit https://www.planning.vic.gov.au

Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.vic.gov.au/disclaimer

Notwithstanding this disclaimer, a vendor may rely on the information in this report for the purpose of a statement that land is in a bushfire prone area as required by section 32C (b) of the Sale of Land 1962 (Vic).

PLANNING PROPERTY REPORT

Department of Transport and Planning

Designated Bushfire Prone Areas

This property is not in a designated bushfire prone area.
No special bushfire construction requirements apply. Planning provisions may apply.

Where part of the property is mapped as BPA, if no part of the building envelope or footprint falls within the BPA area, the BPA construction requirements do not apply.

Note: the relevant building surveyor determines the need for compliance with the bushfire construction requirements.



Designated BPA are determined by the Minister for Planning following a detailed review process. The Building Regulations 2018, through adoption of the Building Code of Australia, apply bushfire protection standards for building works in designated BPA.

Designated BPA maps can be viewed on VicPlan at https://mapshare.vic.gov.au/vicplan/ or at the relevant local council.

Create a BPA definition plan in VicPlan to measure the BPA.

Information for lot owners building in the BPA is available at https://www.planning.vic.gov.au.

Further information about the building control system and building in bushfire prone areas can be found on the Victorian Building Authority website https://www.vba.vic.gov.au. Copies of the Building Act and Building Regulations are available from http://www.legislation.vic.gov.au. For Planning Scheme Provisions in bushfire areas visit https://www.planning.vic.gov.au.

Native Vegetation

Native plants that are indigenous to Victoria and important for biodiversity might be present on this property. This could include trees, shrubs, herbs, grasses or aquatic plants. There are a range of regulations that may apply including need to obtain a planning permit under Clause 52.17 of the local planning scheme. For more information see Native Vegetation (Clause 52.17) with local variations in Native Vegetation (Clause 52.17) Schedule

To help identify native vegetation on this property and the application of Clause 52.17 please visit the Native Vegetation Regulations Map (NVR Map) https://mapshare.vic.gov.au/nvr/ and Native vegetation (environment.vic.gov.au) or please contact your relevant council.

You can find out more about the natural values on your property through NatureKit NatureKit (environment.vic.gov.au)

Copyright © - State Government of Victoria
Disclaimer: This content is provided for information purposes only. No claim is made as to the accuracy or authenticity of the content. The Victorian Government does not accept any liability to any person for the information provided.
Read the full disclaimer at https://www.vic.gov.au/disclaimer

Notwithstanding this disclaimer, a vendor may rely on the information in this report for the purpose of a statement that land is in a bushfire prone area as required by section 32C (b) of the Sale of Land 1962 (Vic).